

Contract for the sale of land – 2005 edition

TERM

MEANING OF TERM

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RRE Properties
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Co-agent
Vendor The Uniting Church in Australia Property Trust (NSW)

Vendor's Solicitor Jae Hunt, Level 9, 222 Pitt Street, Sydney NSW 2000 Tel 0477 717 840
Fax 02 9264 4487

Completion date 42 days after the contract date (clause 15)
Land 9 Flora Street, Mascot NSW 2020
(Address, plan details and title reference) Folio Identifier 5/19043 and being Lot 5 in DP 19043

Improvements ☐ VACANT POSSESSION ☒ subject to existing tenancies
☒ HOUSE ☒ garage ☐ carport ☐ home unit ☐ carspace ☐ none
☐ other:
Attached copies ☐ Documents in the List of Documents as marked or as numbered:
☐ Other documents:

A real estate agent is permitted by legislation to fill up the items in this box in a sale of residential property.

Inclusions ☒ blinds ☐ curtains ☒ insect screens ☒ stove
☒ built-in wardrobes ☒ dishwasher ☒ light fittings ☐ pool equipment
☒ clothes line ☒ fixed floor coverings ☒ range hood ☒ TV antenna
☐ other:
Exclusions
Purchaser
Purchaser's solicitor
Price \$
Deposit \$ (10% of the price, unless otherwise stated)
Balance \$
Contract date (if not stated, the date this contract was made)

Vendor

Witness

GST AMOUNT (optional)
The price includes
GST of: \$

Purchaser

☐ JOINT TENANTS ☐ tenants in common ☐ in unequal shares

Witness

Tax information (the parties promise this is correct as far as each party is aware)

Vendor duty is payable ☒ NO ☐ yes in full ☐ yes to an extent
Deposit can be used to pay vendor duty ☒ NO ☐ yes
Land tax is adjustable ☒ NO ☐ yes
GST: Taxable supply ☒ NO ☐ yes in full ☐ yes to an extent
Margin scheme will be used in making the taxable supply ☒ NO ☐ yes

This sale is not a taxable supply because (one or more of the following may apply) the sale is:

- ☐ not made in the course or furtherance of an enterprise that the vendor carries on (section 9-5(b))
- ☐ by a vendor who is neither registered nor required to be registered for GST (section 9-5(d))
- ☐ GST-free because the sale is the supply of a going concern under section 38-325
- ☐ GST-free because the sale is subdivided farm land or farm land supplied for farming under Subdivision 38-O
- ☒ input taxed because the sale is of eligible residential premises (sections 40-65, 40-75(2) and 195-1)

HOLDER OF STRATA OR COMMUNITY TITLE RECORDS – Name, address and telephone number

General	Strata or community title (clause 23 of the contract)
☒ 1 property certificate for the land	☐ 24 property certificate for strata common property
☒ 2 plan of the land	☐ 25 plan creating strata common property
☐ 3 unregistered plan of the land	☐ 26 strata by-laws not set out in <i>legislation</i>
☐ 4 plan of land to be subdivided	☐ 27 strata development contract or statement
☐ 5 document that is to be lodged with a relevant plan	☐ 28 strata management statement
☒ 6 section 149(2) certificate (Environmental Planning and Assessment Act 1979)	☐ 29 leasehold strata - lease of lot and common property
☐ 7 section 149(5) information included in that certificate	☐ 30 property certificate for neighbourhood property
☒ 8 sewerage connections diagram	☐ 31 plan creating neighbourhood property
☐ 9 sewer mains diagram	☐ 32 neighbourhood development contract
☐ 10 document that created or may have created an easement, profit à prendre, restriction on use or positive covenant disclosed in this contract	☐ 33 neighbourhood management statement
☐ 11 section 88G certificate (positive covenant)	☐ 34 property certificate for precinct property
☐ 12 survey report	☐ 35 plan creating precinct property
☐ 13 section 317A certificate (certificate of compliance)	☐ 36 precinct development contract
☐ 14 building certificate given under <i>legislation</i>	☐ 37 precinct management statement
☐ 15 insurance certificate (Home Building Act 1989)	☐ 38 property certificate for community property
☐ 16 brochure or note (Home Building Act 1989)	☐ 39 plan creating community property
☐ 17 section 24 certificate (Swimming Pools Act 1982)	☐ 40 community development contract
☐ 18 lease (with every relevant memorandum or variation)	☐ 41 community management statement
☐ 19 other document relevant to tenancies	☐ 42 document disclosing a change of by-laws
☐ 20 old system document	☐ 43 document disclosing a change in a development or management contract or statement
☐ 21 Crown tenure card	☐ 44 document disclosing a change in boundaries
☐ 22 Crown purchase statement of account	☐ 45 certificate under Management Act – section 109 (Strata Schemes) or section 26 (Community Land)
☐ 23 Statutory declaration regarding <i>vendor duty</i>	

WARNINGS

- Various Acts of Parliament and other matters can affect the rights of the parties to this contract. Some important matters are actions, claims, decisions, licences, notices, orders, proposals or rights of way involving

AGL Gas Networks Limited	Government Business & Government Procurement	Public Works Dept
Council	Heritage Office	Roads & Traffic Authority
County Council	Infrastructure Planning and Natural Resources	Rural Lands Protection Board
East Australian Pipeline Limited	Land & Housing Corporation	Sustainable Energy Development
Education & Training Dept	Mine Subsidence Board	Telecommunications authority
Electricity authority	Owner of adjoining land	Water, sewerage or drainage authority
Environment & Conservation Dept	Primary Industries Department	
Fair Trading	RailCorp	

 If you think that any of these matters affects the property, tell your solicitor.
- A lease may be affected by the Agricultural Tenancies Act 1990, the Residential Tenancies Act 1987 or the Retail Leases Act 1994.
- If any purchase money is owing to the Crown, it may become payable when the transfer is registered.
- If a consent to transfer is required under legislation, see clause 27 as to the obligations of the parties.
- The vendor should continue the vendor's insurance until completion. If the vendor wants to give the purchaser possession before completion, the vendor should first ask the insurer to confirm this will not affect the insurance.
- The purchaser will usually have to pay stamp duty on this contract. The sale will also usually be a vendor duty transaction. If duty is not paid on time, a party may incur penalties.
- If the purchaser agrees to the release of deposit any rights in relation to the land (for example, the rights mentioned in clause 2.8) may be subject to the rights of other persons such as the vendor's mortgagee.
- The purchaser should arrange insurance as appropriate.

DISPUTES

If you get into a dispute with the other party, the Law Society and Real Estate Institute encourage you to use informal procedures such as negotiation, independent expert appraisal or mediation (for example mediation under the Law Society Mediation Guidelines).

AUCTIONS

Regulations made under the Property Stock and Business Agents Act 2002 prescribe a number of conditions applying to sales by auction.

WARNING SWIMMING POOLS

An owner of property on which a swimming pool is situated must ensure that the pool complies with the requirements of the *Swimming Pools Act 1992*. Penalties apply. Before purchasing a property on which a swimming pool is situated, a purchaser is strongly advised to ensure that the swimming pool complies with the requirements of that Act.

WARNING SMOKE ALARMS

The owners of certain types of buildings and strata lots must have smoke alarms (or in certain cases heat alarms) installed in the building or lot in accordance with regulations under the *Environmental Planning and Assessment Act 1979*. It is an offence not to comply. It is also an offence to remove or interfere with a smoke alarm or heat alarm. Penalties apply.

IMPORTANT NOTICE TO VENDORS AND PURCHASERS

Before signing this contract you should ensure that you understand your rights and obligations, some of which are not written in this contract but are implied by law.

For example, as purchaser you should be satisfied that finance will be available at the time of completing the purchase (even if settlement might occur many months after signing this contract – in particular, if you are buying off the plan).

COOLING OFF PERIOD (PURCHASER'S RIGHTS)

1. This is the statement required by section 66X of the *Conveyancing Act 1919* and applies to a contract for the sale of residential property.
2. The purchaser may rescind the contract at any time before 5 p.m. on the fifth business day after the day on which the contract was made, **EXCEPT** in the circumstances listed in paragraph 3.
3. There is **NO COOLING OFF PERIOD**:
 - (a) if, at or before the time the contract is made, the purchaser gives to the vendor (or the vendor's solicitor or agent) a certificate that complies with section 66W of the Act; or
 - (b) if the property is sold by public auction; or
 - (c) if the contract is made on the same day as the property was offered for sale by public auction but passed in; or
 - (d) if the contract is made in consequence of the exercise of an option to purchase the property, other than an option that is void under section 66ZG of the Act.
4. A purchaser exercising the right to cool off by rescinding the contract will forfeit to the vendor 0.25% of the purchase price of the property. The vendor is entitled to recover the amount forfeited from any amount paid by the purchaser as a deposit under the contract and the purchaser is entitled to a refund of any balance.

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The vendor sells and the purchaser buys the *property* for the price under these provisions instead of Schedule 3 Conveyancing Act 1919, subject to any *legislation* that cannot be excluded.

1 Definitions (a term in *italics* is a defined term)

In this contract, these terms (in any form) mean -

<i>adjustment date</i>	the earlier of the giving of possession to the purchaser or completion;
<i>bank</i>	a bank as defined in the Banking Act 1959, the Reserve Bank or a State bank;
<i>business day</i>	any day except a bank or public holiday throughout NSW or a Saturday or Sunday;
<i>cheque</i>	a cheque that is not postdated or stale;
<i>depositholder</i>	vendor's agent (or if no vendor's agent is named in this contract, the vendor's <i>solicitor</i>);
<i>document of title</i>	document relevant to the title or the passing of title;
<i>GST Act</i>	A New Tax System (Goods and Services Tax) Act 1999;
<i>GST rate</i>	the rate mentioned in section 4 of A New Tax System (Goods and Services Tax Imposition - General) Act 1999 (10% as at 1 July 2000);
<i>legislation</i>	an Act or a by-law, ordinance, regulation or rule made under an Act;
<i>normally</i>	subject to any other provision of this contract;
<i>party</i>	each of the vendor and the purchaser;
<i>property</i>	the land, the improvements, all fixtures and the inclusions, but not the exclusions;
<i>requisition</i>	an objection, question or requisition (but the term does not include a claim);
<i>rescind</i>	rescind this contract from the beginning;
<i>serve</i>	serve in writing on the other <i>party</i> ;
<i>settlement cheque</i>	an unendorsed <i>cheque</i> made payable to the person to be paid and drawn on its own funds by - ● a <i>bank</i>; or ● a building society, credit union or other FCA institution as defined in Cheques Act 1986; that carries on business in Australia; or if authorised in writing by the vendor or the vendor's <i>solicitor</i> , some other <i>cheque</i> ;
<i>solicitor</i>	in relation to a <i>party</i> , the <i>party's</i> solicitor or licensed conveyancer named in this contract or in a notice <i>served</i> by the <i>party</i> ;
<i>terminate</i>	terminate this contract for breach;
<i>vendor duty</i>	vendor duty imposed under Chapter 4 of the Duties Act 1997;
<i>within</i>	in relation to a period, at any time before or during the period;
<i>work order</i>	a valid direction, notice or order that requires work to be done or money to be spent on or in relation to the <i>property</i> or any adjoining footpath or road.

2 Deposit and other payments before completion

- 2.1 The purchaser must pay the deposit to the *depositholder* as stakeholder.
- 2.2 *Normally*, the purchaser must pay the deposit on the making of this contract, and this time is essential.
- 2.3 If this contract requires the purchaser to pay any of the deposit by a later time, that time is also essential.
- 2.4 The purchaser can pay any of the deposit only by unconditionally giving cash (up to \$2,000) or a *cheque* to the *depositholder* or to the vendor, vendor's agent or vendor's *solicitor* for sending to the *depositholder*.
- 2.5 If any of the deposit is not paid on time or a *cheque* for any of the deposit is not honoured on presentation, the vendor can *terminate*. This right to *terminate* is lost as soon as the deposit is paid in full.
- 2.6 If the vendor accepts a bond or guarantee for the deposit, clauses 2.1 to 2.5 and 3 do not apply.
- 2.7 If the vendor accepts a bond or guarantee for part of the deposit, clauses 2.1 to 2.5 and 3 apply only to the balance.
- 2.8 If any of the deposit or of the balance of the price is paid before completion to the vendor or as the vendor directs, it is a charge on the land in favour of the purchaser until *termination* by the vendor or completion, subject to any existing right.
- 2.9 If each *party* tells the *depositholder* that the deposit is to be invested, the *depositholder* is to invest the deposit (at the risk of the *party* who becomes entitled to it) with a *bank*, credit union or permanent building society, in an interest-bearing account in NSW, payable at call, with interest to be reinvested, and pay the interest to the *parties* equally, after deduction of all proper government taxes and financial institution charges and other charges.

3 Payment of vendor duty out of the deposit

- 3.1 This clause applies only if this contract says the deposit can be used to pay vendor duty.
- 3.2 If the amount held by the *depositholder* (disregarding the value of any bond or guarantee) exceeds the amount of *vendor duty*, the *parties* direct the *depositholder* to release the amount of *vendor duty* on the following terms -
- 3.2.1 the *depositholder* is to draw a *cheque* ("the vendor duty cheque") in favour of the Office of State Revenue and in a form acceptable to the Office of State Revenue for payment of *vendor duty*;
- 3.2.2 the *depositholder* is not to draw that *cheque* earlier than 14 days before the completion date; and
- 3.2.3 the receipt of a letter from the vendor's *solicitor* requesting the vendor duty cheque will be sufficient authority for the *depositholder* to draw and release that cheque.
- 3.3 The vendor's *solicitor* will use the vendor duty cheque for the sole purpose of payment of the *vendor duty* relating to this transaction.
- 3.4 If this contract is not completed in circumstances that there is, or may be, no liability for *vendor duty* -
- 3.4.1 if the vendor duty cheque has been forwarded to the vendor's *solicitor* but has not been used to pay *vendor duty*, that cheque must be returned immediately to the *depositholder* for cancellation;
- 3.4.2 if the vendor duty cheque has been used to pay *vendor duty* -
- the amount of *vendor duty* is repayable upon demand;
 - the vendor must lodge an application for refund of *vendor duty*; and
 - the vendor irrevocably authorises the Office of State Revenue to pay to the *depositholder* the refund of *vendor duty*;
- 3.4.3 each *party* must do whatever else is necessary to ensure that the *party* whose funds were used to pay *vendor duty* receives the refund; and
- 3.4.4 rights under this clause continue even if the contract has been *rescinded* or *terminated*.

4 Transfer

- 4.1 *Normally*, the purchaser must *serve* the form of transfer at least 14 days before the completion date.
- 4.2 If any information needed for the form of transfer is not disclosed in this contract, the vendor must *serve* it.
- 4.3 If the purchaser *serves* a form of transfer and the transferee is not the purchaser, the purchaser must give the vendor a direction signed by the purchaser personally for this form of transfer.
- 4.4 The vendor can require the purchaser to include a form of covenant or easement in the transfer only if this contract contains the wording of the proposed covenant or easement, and a description of the land benefited.
- 4.5 If this sale is exempt from *vendor duty* -
- 4.5.1 the vendor can (but does not have to) *serve* an application for exemption from *vendor duty* in the form satisfactory to the Office of State Revenue *within* 7 days after the contract date;
- 4.5.2 if that application is attached to this contract or has been provided to the purchaser before the contract date, the application is *served* on the contract date; and
- 4.5.3 if the vendor complies with clause 4.5.1 -
- the purchaser must have the form of transfer marked by the Office of State Revenue in relation to *vendor duty* before *serving* the form of transfer; and
 - on completion the vendor must pay to the purchaser \$33.

5 Requisitions

- If the purchaser is or becomes entitled to make a *requisition*, the purchaser can make it only by *serving* it -
- 5.1 if it arises out of this contract or it is a general question about the *property* or title - *within* 21 days after the contract date;
- 5.2 if it arises out of anything *served* by the vendor - *within* 21 days after the later of the contract date and that *service*; and
- 5.3 in any other case - *within* a reasonable time.

6 Error or misdescription

- 6.1 The purchaser can (but only before completion) claim compensation for an error or misdescription in this contract (as to the *property*, the title or anything else and whether substantial or not).
- 6.2 This clause applies even if the purchaser did not take notice of or rely on anything in this contract containing or giving rise to the error or misdescription.
- 6.3 However, this clause does not apply to the extent the purchaser knows the true position.

7 Claims by purchaser

The purchaser can make a claim (including a claim under clause 6) before completion only by *serving* it with a statement of the amount claimed, and if the purchaser makes one or more claims before completion -

7.1 the vendor can *rescind* if in the case of claims that are not claims for delay -

7.1.1 the total amount claimed exceeds 5% of the price;

7.1.2 the vendor *serves* notice of intention to *rescind*; and

7.1.3 the purchaser does not *serve* notice waiving the claims *within* 14 days after that *service*; and

7.2 if the vendor does not *rescind*, the *parties* must complete and if this contract is completed -

7.2.1 the lesser of the total amount claimed and 10% of the price must be paid out of the price to and held by the *depositholder* until the claims are finalised or lapse;

7.2.2 the amount held is to be invested in accordance with clause 2.9;

7.2.3 the claims must be finalised by an arbitrator appointed by the *parties* or, if an appointment is not made *within* 1 month of completion, by an arbitrator appointed by the President of the Law Society at the request of a *party* (in the latter case the *parties* are bound by the terms of the Conveyancing Arbitration Rules approved by the Law Society as at the date of the appointment);

7.2.4 the purchaser is not entitled, in respect of the claims, to more than the total amount claimed and the costs of the purchaser;

7.2.5 net interest on the amount held must be paid to the *parties* in the same proportion as the amount held; and

7.2.6 if the *parties* do not appoint an arbitrator and neither *party* requests the President to appoint an arbitrator *within* 3 months after completion, the claims lapse.

8 Vendor's right to rescind

The vendor can *rescind* if -

8.1 the vendor is, on reasonable grounds, unable or unwilling to comply with a *requisition*;

8.2 the vendor *serves* a notice of intention to *rescind* that specifies the *requisition* and those grounds; and

8.3 the purchaser does not *serve* a notice waiving the *requisition within* 14 days after that *service*.

9 Purchaser's default

If the purchaser does not comply with this contract (or a notice under or relating to it) in an essential respect, the vendor can *terminate* by *serving* a notice. After the *termination* the vendor can -

9.1 keep or recover the deposit (to a maximum of 10% of the price);

9.2 hold any other money paid by the purchaser under this contract as security for anything recoverable under this clause-

9.2.1 for 12 months after the *termination*; or

9.2.2 if the vendor commences proceedings under this clause *within* 12 months, until those proceedings are concluded; and

9.3 sue the purchaser either -

9.3.1 where the vendor has resold the *property* under a contract made *within* 12 months after the *termination*, to recover -

- the deficiency on resale (with credit for any of the deposit kept or recovered and after allowance for any capital gains tax or goods and services tax payable on anything recovered under this clause); and
- the reasonable costs and expenses arising out of the purchaser's non-compliance with this contract or the notice and of resale and any attempted resale; or

9.3.2 to recover damages for breach of contract.

10 Restrictions on rights of purchaser

10.1 The purchaser cannot make a claim or *requisition* or *rescind* or *terminate* in respect of -

10.1.1 the ownership or location of any fence as defined in the Dividing Fences Act 1991;

10.1.2 a service for the *property* being a joint service or passing through another property, or any service for another property passing through the *property* ('service' includes air, communication, drainage, electricity, garbage, gas, oil, radio, sewerage, telephone, television or water service);

10.1.3 a wall being or not being a party wall in any sense of that term or the *property* being affected by an easement for support or not having the benefit of an easement for support;

10.1.4 any change in the *property* due to fair wear and tear before completion;

10.1.5 a promise, representation or statement about this contract, the *property* or the title, not set out or referred to in this contract;

10.1.6 a condition, exception, reservation or restriction in a Crown grant;

10.1.7 the existence of any authority or licence to explore or prospect for gas, minerals or petroleum;

10.1.8 any easement or restriction on use the substance of either of which is disclosed in this contract or any non-compliance with the easement or restriction on use; or

10.1.9 anything the substance of which is disclosed in this contract (except a caveat, charge, mortgage or writ).

10.2 The purchaser cannot *rescind* or *terminate* only because of a defect in title to or quality of the inclusions.

10.3 *Normally*, the purchaser cannot make a claim or *requisition* or *rescind* or *terminate* or require the vendor to change the nature of the title disclosed in this contract (for example, to remove a caution evidencing qualified title, or to lodge a plan of survey as regards limited title).

11 Compliance with work orders

- 11.1 *Normally*, the vendor must by completion comply with a *work order* made on or before the contract date and if this contract is completed the purchaser must comply with any other *work order*.
- 11.2 If the purchaser complies with a *work order*, and this contract is *rescinded* or *terminated*, the vendor must pay the expense of compliance to the purchaser.

12 Certificates and inspections

- The vendor must do everything reasonable to enable the purchaser, subject to the rights of any tenant -
- 12.1 to have the *property* inspected to obtain any certificate or report reasonably required;
- 12.2 to apply (if necessary in the name of the vendor) for -
- 12.2.1 any certificate that can be given in respect of the *property* under *legislation*; or
 - 12.2.2 a copy of any approval, certificate, consent, direction, notice or order in respect of the *property* given under *legislation*, even if given after the contract date; and
- 12.3 to make 1 inspection of the *property* in the 3 days before a time appointed for completion.

13 Goods and services tax (GST)

- 13.1 In this clause, enterprise, input tax credit, margin scheme, supply of a going concern, tax invoice and taxable supply have the same meanings as in the *GST Act*.
- 13.2 *Normally*, if a *party* must pay the price or any other amount to the other *party* under this contract, GST is not to be added to the price or amount.
- 13.3 If under this contract a *party* must make an adjustment, pay an expense of another party or pay an amount payable by or to a third party (for example, under clauses 14 or 20.7) -
- 13.3.1 the *party* must adjust or pay on completion any GST added to or included in the amount; but
 - 13.3.2 if this contract says this sale is a taxable supply, and payment would entitle the *party* to an input tax credit, the adjustment or payment is to be worked out by deducting any input tax credit to which the party receiving the adjustment is or was entitled and adding the *GST rate*.
- 13.4 If this contract says this sale is the supply of a going concern -
- 13.4.1 the *parties* agree the supply of the *property* is a supply of a going concern;
 - 13.4.2 the vendor must, between the contract date and completion, carry on the enterprise conducted on the land in a proper and business-like way;
 - 13.4.3 if the purchaser is not registered by the completion date, the *parties* must complete and the purchaser must pay on completion, in addition to the price, an amount being the price multiplied by the *GST rate* ("the retention sum"). The retention sum is to be held by the *depositholder* and dealt with as follows:
 - if *within* 3 months of completion the purchaser *serves* a letter from the Australian Taxation Office stating the purchaser is registered, the *depositholder* is to pay the retention sum to the purchaser; but
 - if the purchaser does not *serve* that letter *within* 3 months of completion, the *depositholder* is to pay the retention sum to the vendor; and
 - 13.4.4 if the vendor, despite clause 13.4.1, *serves* a letter from the Australian Taxation Office stating the vendor has to pay GST on the supply, the purchaser must pay to the vendor on demand the amount of GST assessed.
- 13.5 *Normally*, the vendor promises the margin scheme will not apply to the supply of the *property*.
- 13.6 If this contract says the margin scheme is to apply in making the taxable supply, the parties agree that the margin scheme is to apply to the sale of the property.
- 13.7 If this contract says the sale is not a taxable supply -
- 13.7.1 the purchaser promises that the *property* will not be used and represents that the purchaser does not intend the *property* (or any part of the *property*) to be used in a way that could make the sale a taxable supply to any extent; and
 - 13.7.2 the purchaser must pay the vendor on completion in addition to the price an amount calculated by multiplying the price by the *GST rate* if this sale is a taxable supply to any extent because of -
 - a breach of clause 13.7.1; or
 - something else known to the purchaser but not the vendor.
- 13.8 If this contract says this sale is a taxable supply in full and does not say the margin scheme applies to the *property*, the vendor must pay the purchaser on completion an amount of one-eleventh of the price if -
- 13.8.1 this sale is not a taxable supply in full; or
 - 13.8.2 the margin scheme applies to the *property* (or any part of the *property*).
- 13.9 If this contract says this sale is a taxable supply to an extent -
- 13.9.1 clause 13.7.1 does not apply to any part of the *property* which is identified as being a taxable supply; and
 - 13.9.2 the payments mentioned in clauses 13.7 and 13.8 are to be recalculated by multiplying the relevant payment by the proportion of the price which represents the value of that part of the *property* to which the clause applies (the proportion to be expressed as a number between 0 and 1). Any evidence of value must be obtained at the expense of the vendor.
- 13.10 *Normally*, on completion the vendor must give the recipient of the supply a tax invoice for any taxable supply by the vendor by or under this contract.
- 13.11 The vendor does not have to give the purchaser a tax invoice if the margin scheme applies to a taxable supply.

14 Adjustments

- 14.1 *Normally*, the vendor is entitled to the rents and profits and will be liable for all rates, water, sewerage and drainage service and usage charges, land tax and all other periodic outgoings up to and including the *adjustment date* after which the purchaser will be entitled and liable.
- 14.2 The *parties* must make any necessary adjustment on completion.
- 14.3 If an amount that is adjustable under this contract has been reduced under *legislation*, the *parties* must on completion adjust the reduced amount.
- 14.4 The *parties* must adjust land tax for the year current at the *adjustment date* -
- 14.4.1 only if land tax has been paid or is payable for the year (whether by the vendor or by a predecessor in title) and this contract says that land tax is adjustable;
 - 14.4.2 by adjusting the amount that would have been payable if at the start of the year -
 - the person who owned the land owned no other land;
 - the land was not subject to a special trust or owned by a non-concessional company; and
 - if the land (or part of it) had no separate taxable value, by calculating its separate taxable value on a proportional area basis.
- 14.5 If any other amount that is adjustable under this contract relates partly to the land and partly to other land, the *parties* must adjust it on a proportional area basis.
- 14.6 *Normally*, the vendor can direct the purchaser to produce a *settlement cheque* on completion to pay an amount adjustable under this contract and if so -
- 14.6.1 the amount is to be treated as if it were paid; and
 - 14.6.2 the *cheque* must be forwarded to the payee immediately after completion (by the purchaser if the *cheque* relates only to the *property* or by the vendor in any other case).
- 14.7 If on completion the last bill for a water, sewerage or drainage usage charge is for a period ending before the *adjustment date*, the vendor is liable for an amount calculated by dividing the bill by the number of days in the period then multiplying by the number of unbilled days up to and including the *adjustment date*.
- 14.8 The vendor is liable for any amount recoverable for work started on or before the contract date on the *property* or any adjoining footpath or road.

15 Completion date

The *parties* must complete by the completion date and, if they do not, a *party* can serve a notice to complete if that *party* is otherwise entitled to do so.

16 Completion

• Vendor

- 16.1 On completion the vendor must give the purchaser any *document of title* that relates only to the *property*.
- 16.2 If on completion the vendor has possession or control of a *document of title* that relates also to other property, the vendor must produce it as and where necessary.
- 16.3 *Normally*, on completion the vendor must cause the legal title to the *property* (being an estate in fee simple) to pass to the purchaser free of any mortgage or other interest, subject to any necessary registration.
- 16.4 The legal title to the *property* does not pass before completion.
- 16.5 If the vendor gives the purchaser a document (other than the transfer) that needs to be lodged for registration, the vendor must pay the lodgment fee to the purchaser, plus another 20% of that fee.
- 16.6 If the purchaser *serves* a land tax certificate showing a charge on any of the land, on completion the vendor must give the purchaser a land tax certificate showing the charge is no longer effective against the land.

• Purchaser

- 16.7 On completion the purchaser must pay to the vendor, by cash (up to \$2,000) or *settlement cheque*, the price (less any deposit paid) and any other amount payable by the purchaser under this contract (less any amount payable by the vendor to the purchaser under this contract).
- 16.8 If the vendor requires more than 5 *settlement cheques*, the vendor must pay \$10 for each extra *cheque*.
- 16.9 If any of the deposit is not covered by a bond or guarantee, on completion the purchaser must give the vendor an order signed by the purchaser authorising the *depositholder* to account to the vendor for the deposit.
- 16.10 On completion the deposit belongs to the vendor.

• Place for completion

- 16.11 *Normally*, the *parties* must complete at the completion address, which is -
- 16.11.1 if a special completion address is stated in this contract - that address; or
 - 16.11.2 if none is stated, but a first mortgagee is disclosed in this contract and the mortgagee would usually discharge the mortgage at a particular place - that place; or
 - 16.11.3 in any other case - the vendor's *solicitor's* address stated in this contract.
- 16.12 The vendor by reasonable notice can require completion at another place, if it is in NSW, but the vendor must pay the purchaser's additional expenses, including any agency or mortgagee fee.
- 16.13 If the purchaser requests completion at a place that is not the completion address, and the vendor agrees, the purchaser must pay the vendor's additional expenses, including any agency or mortgagee fee.

17 Possession

- 17.1 *Normally*, the vendor must give the purchaser vacant possession of the *property* on completion.
- 17.2 The vendor does not have to give vacant possession if -

- 17.2.1 this contract says that the sale is subject to existing tenancies; and
 - 17.2.2 the contract discloses the provisions of the tenancy (for example, by attaching a copy of the lease and any relevant memorandum or variation).
- 17.3 *Normally*, the purchaser can claim compensation (before or after completion) or *rescind* if any of the land is affected by a protected tenancy (a tenancy affected by Part 2, 3, 4 or 5 Landlord and Tenant (Amendment) Act 1948).

18 Possession before completion

- 18.1 This clause applies only if the vendor gives the purchaser possession of the *property* before completion.
- 18.2 The purchaser must not before completion -
- 18.2.1 let or part with possession of any of the *property*;
 - 18.2.2 make any change or structural alteration or addition to the *property*; or
 - 18.2.3 contravene any agreement between the *parties* or any direction, document, *legislation*, notice or order affecting the *property*.
- 18.3 The purchaser must until completion -
- 18.3.1 keep the *property* in good condition and repair having regard to its condition at the giving of possession; and
 - 18.3.2 allow the vendor or the vendor's authorised representative to enter and inspect it at all reasonable times.
- 18.4 The risk as to damage to the *property* passes to the purchaser immediately after the purchaser enters into possession.
- 18.5 If the purchaser does not comply with this clause, then without affecting any other right of the vendor -
- 18.5.1 the vendor can before completion, without notice, remedy the non-compliance; and
 - 18.5.2 if the vendor pays the expense of doing this, the purchaser must pay it to the vendor with interest at the rate mentioned in Schedule J of the Supreme Court Rules 1970.
- 18.6 If this contract is *rescinded* or *terminated* the purchaser must immediately vacate the *property*.
- 18.7 If the *parties* or their *solicitors* on their behalf do not agree in writing to a fee or rent, none is payable.

19 Rescission of contract

- 19.1 If this contract expressly gives a *party* a right to *rescind*, the *party* can exercise the right -
- 19.1.1 only by *serving* a notice before completion; and
 - 19.1.2 in spite of any making of a claim or *requisition*, any attempt to satisfy a claim or *requisition*, any arbitration, litigation, mediation or negotiation or any giving or taking of possession.
- 19.2 *Normally*, if a *party* exercises a right to *rescind* expressly given by this contract or any *legislation* -
- 19.2.1 the deposit and any other money paid by the purchaser under this contract must be refunded;
 - 19.2.2 a *party* can claim for a reasonable adjustment if the purchaser has been in possession;
 - 19.2.3 a *party* can claim for damages, costs or expenses arising out of a breach of this contract; and
 - 19.2.4 a *party* will not otherwise be liable to pay the other *party* any damages, costs or expenses.

20 Miscellaneous

- 20.1 The *parties* acknowledge that anything stated in this contract to be attached was attached to this contract by the vendor before the purchaser signed it and is part of this contract.
- 20.2 Anything attached to this contract is part of this contract.
- 20.3 An area, bearing or dimension in this contract is only approximate.
- 20.4 If a *party* consists of 2 or more persons, this contract benefits and binds them separately and together.
- 20.5 A *party's* *solicitor* can receive any amount payable to the *party* under this contract or direct in writing that it is to be paid to another person.
- 20.6 A document under or relating to this contract is -
- 20.6.1 signed by a *party* if it is signed by the *party* or the *party's* *solicitor* (apart from a direction under clause 4.3);
 - 20.6.2 *served* if it is *served* by the *party* or the *party's* *solicitor*;
 - 20.6.3 *served* if it is *served* on the *party's* *solicitor*, even if the *party* has died or any of them has died;
 - 20.6.4 *served* if it is *served* in any manner provided in s170 of the Conveyancing Act 1919;
 - 20.6.5 *served* if it is sent by fax to the *party's* *solicitor*, unless it is not received;
 - 20.6.6 *served* on a person if it (or a copy of it) comes into the possession of the person; and
 - 20.6.7 *served* at the earliest time it is *served*, if it is *served* more than once.
- 20.7 An obligation to pay an expense of another *party* of doing something is an obligation to pay -
- 20.7.1 if the *party* does the thing personally - the reasonable cost of getting someone else to do it; or
 - 20.7.2 if the *party* pays someone else to do the thing - the amount paid, to the extent it is reasonable.
- 20.8 Rights under clauses 11, 13, 14, and 17 continue after completion, whether or not other rights continue.
- 20.9 The vendor does not promise, represent or state that the purchaser has any cooling off rights.
- 20.10 The vendor does not promise, represent or state that any attached survey report is accurate or current.
- 20.11 A reference to any *legislation* includes a reference to any corresponding later *legislation*.
- 20.12 Each *party* must do whatever is necessary after completion to carry out the *party's* obligations under this contract.
- 20.13 Neither taking possession nor *serving* a transfer of itself implies acceptance of the *property* or the title.
- 20.14 The details and information provided in this contract (for example, on page 1) are, to the extent of each *party's* knowledge, true, and are part of this contract.
- 20.15 Where this contract provides for choices, a choice in BLOCK CAPITALS applies unless a different choice is marked.

21 Time limits in these provisions

- 21.1 If the time for something to be done or to happen is not stated in these provisions, it is a reasonable time.
- 21.2 If there are conflicting times for something to be done or to happen, the latest of those times applies.

- 21.3 The time for one thing to be done or to happen does not extend the time for another thing to be done or to happen.
- 21.4 If the time for something to be done or to happen is the 29th, 30th or 31st day of a month, and the day does not exist, the time is instead the last day of the month.
- 21.5 If the time for something to be done or to happen is a day that is not a *business day*, the time is extended to the next *business day*, except in the case of clause 2 (deposit).
- 21.6 *Normally*, the time by which something must be done is fixed but not essential.

22 Foreign Acquisitions and Takeovers Act 1975

- 22.1 The purchaser promises that the Commonwealth Treasurer cannot prohibit and has not prohibited the transfer under the Foreign Acquisitions and Takeovers Act 1975.
- 22.2 This promise is essential and a breach of it entitles the vendor to *terminate*.

23 Strata or community title

- 23.1 This clause applies only if the land (or part of it) is a lot in a strata, neighbourhood, precinct or community scheme (or on completion is to be a lot in a scheme of that kind).
- 23.2 In this contract -
- ‘change’, in relation to a scheme, means -
 - a registered or registrable change from by-laws set out in this contract or set out in *legislation* and specified in this contract;
 - a change from a development or management contract or statement set out in this contract; or
 - a change in the boundaries of common property;
 - ‘common property’ includes association property for the scheme or any higher scheme;
 - ‘contribution’ includes an amount payable under a by-law;
 - ‘normal expenses’, in relation to an owners corporation for a scheme, means normal operating expenses usually payable from the administrative fund of an owners corporation for a scheme of the same kind;
 - ‘owners corporation’ means the owners corporation or the association for the scheme or any higher scheme;
 - ‘the *property*’ includes any interest in common property for the scheme associated with the lot;
 - ‘special expenses’, in relation to an owners corporation, means its actual, contingent or expected expenses, except to the extent they are normal expenses, due to fair wear and tear, disclosed in this contract or covered by moneys held in the sinking fund.
- 23.3 Clauses 11, 14.8 and 18.4 do not apply to an obligation of the owners corporation, or to property insurable by it.
- 23.4 Clauses 14.4.2 and 14.5 apply but on a unit entitlement basis instead of an area basis.
- 23.5 The *parties* must adjust under clause 14.1 -
- 23.5.1 a regular periodic contribution;
 - 23.5.2 a contribution which is not a regular periodic contribution but is disclosed in this contract; and
 - 23.5.3 on a unit entitlement basis, any amount paid by the vendor for a normal expense of the owners corporation to the extent the owners corporation has not paid the amount to the vendor.
- 23.6 If a contribution is not a regular periodic contribution and is not disclosed in this contract -
- 23.6.1 the vendor is liable for it if it was levied before the contract date (unless it relates to work not started by that date), even if it is payable by instalments;
 - 23.6.2 the vendor is also liable for it to the extent it relates to work started by the owners corporation before the contract date; and
 - 23.6.3 the purchaser is liable for all other contributions levied after the *contract date*.
- 23.7 The vendor must pay or allow to the purchaser on completion the amount of any unpaid contributions for which the vendor is liable under clause 23.6.
- 23.8 *Normally*, the purchaser cannot make a claim or *requisition* or *rescind* or *terminate* in respect of -
- 23.8.1 an existing or future actual, contingent or expected expense of the owners corporation;
 - 23.8.2 a proportional unit entitlement of the lot or a relevant lot or former lot, apart from a claim under clause 6; or
 - 23.8.3 a past or future change in the scheme or a higher scheme.
- 23.9 However, the purchaser can *rescind* if -
- 23.9.1 the special expenses of the owners corporation at the later of the contract date and the creation of the owners corporation when calculated on a unit entitlement basis (and, if more than one lot or a higher scheme is involved, added together), less any contribution paid by the vendor, are more than 1% of the price;
 - 23.9.2 in the case of the lot or a relevant lot or former lot in a higher scheme -
 - a proportional unit entitlement for the lot is not disclosed in this contract; or
 - a proportional unit entitlement for the lot is disclosed in this contract but the lot has a different proportional unit entitlement at the contract date or at any time before completion; or
 - 23.9.3 a change before the contract date or before completion in the scheme or a higher scheme substantially disadvantages the purchaser and is not disclosed in this contract.
- 23.10 The purchaser must give the vendor 2 copies of a proper form of notice of the transfer of the lot addressed to the owners corporation and signed by the purchaser.
- 23.11 The vendor must complete and sign 1 copy of the notice and give it to the purchaser on completion.
- 23.12 Each *party* can sign and give the notice as agent for the other.
- 23.13 The vendor must *serve* a certificate under section 109 Strata Schemes Management Act 1996 or section 26 Community Land Management Act 1989 in relation to the lot, the scheme or any higher scheme at least 7 days before the completion date.

- 23.14 The purchaser does not have to complete earlier than 7 days after *service* of the certificate and clause 21.3 does not apply to this provision.
- 23.15 On completion the purchaser must pay the vendor the prescribed fee for the certificate.
- 23.16 The vendor authorises the purchaser to apply for the purchaser's own certificate.
- 23.17 The vendor authorises the purchaser to apply for and make an inspection of any record or other document in the custody or control of the owners corporation or relating to the scheme or any higher scheme.
- 23.18 If a general meeting of the owners corporation is convened before completion -
- 23.18.1 if the vendor receives notice of it, the vendor must immediately notify the purchaser of it; and
- 23.18.2 the purchaser can require the vendor to appoint the purchaser (or the purchaser's nominee) to exercise any voting rights of the vendor in respect of the lot at the meeting.

24 Tenancies

- 24.1 If a tenant has not made a payment for a period preceding or current at the *adjustment date* -
- 24.1.1 for the purposes of clause 14.2, the amount is to be treated as if it were paid; and
- 24.1.2 the purchaser assigns the debt to the vendor on completion and will if required give a further assignment at the vendor's expense.
- 24.2 If a tenant has paid in advance of the *adjustment date* any periodic payment in addition to rent, it must be adjusted as if it were rent for the period to which it relates.
- 24.3 If the *property* is to be subject to a tenancy on completion or is subject to a tenancy on completion -
- 24.3.1 the vendor authorises the purchaser to have any accounting records relating to the tenancy inspected and audited and to have any other document relating to the tenancy inspected;
- 24.3.2 the vendor must *serve* any information about the tenancy reasonably requested by the purchaser before or after completion; and
- 24.3.3 *normally*, the purchaser can claim compensation (before or after completion) if -
- any of Parts 2 to 7 of the Retail Leases Act 1994 applies to the tenancy, unless this contract discloses that the tenancy commenced on or after 1 August 1994;
 - a disclosure statement required by the Act was not given when required;
 - such a statement contained information that was materially false or misleading;
 - a provision of the lease is not enforceable because of a non-disclosure in such a statement; or
 - the lease was entered into in contravention of the Act.
- 24.4 If the *property* is subject to a tenancy on completion -
- 24.4.1 the vendor must allow or transfer -
- any remaining bond money or any other security against the tenant's default (to the extent the security is transferable);
 - any money in a fund established under the lease for a purpose and compensation for any money in the fund or interest earned by the fund that has been applied for any other purpose;
 - any money paid by the tenant for a purpose that has not been applied for that purpose and compensation for any of the money that has been applied for any other purpose; and
- 24.4.2 if the security is not transferable, each *party* must do everything reasonable to cause a replacement security to issue for the benefit of the purchaser and the vendor must hold the original security on trust for the benefit of the purchaser until the replacement security issues;
- 24.4.3 the vendor must give to the purchaser -
- a proper notice of the transfer addressed to the tenant;
 - any certificate given under the Retail Leases Act 1994 in relation to the tenancy;
 - a copy of any disclosure statement given to the tenant under the Retail Leases Act 1994;
 - a copy of any document served on the tenant under the lease and written details of its service, if the document concerns the rights of the landlord or the tenant after completion; and
 - any document served by the tenant under the lease and written details of its service, if the document concerns the rights of the landlord or the tenant after completion;
- 24.4.4 the vendor must comply with any obligation to the tenant under the lease, to the extent it is to be complied with by completion; and
- 24.4.5 the purchaser must comply with any obligation to the tenant under the lease, to the extent that the obligation is disclosed in this contract and is to be complied with after completion.
- 24.5 Rights under this clause continue after completion, whether or not other rights continue.

25 Qualified title, limited title and old system title

- 25.1 This clause applies only if the land (or part of it) -
 25.1.1 is under qualified, limited or old system title; or
 25.1.2 on completion is to be under one of those titles.
- 25.2 The vendor must *serve* a proper abstract of title *within 7* days after the contract date.
- 25.3 If an abstract of title or part of an abstract of title is attached to this contract or has been lent by the vendor to the purchaser before the contract date, the abstract or part is *served* on the contract date.
- 25.4 An abstract of title can be or include a list of documents, events and facts arranged (apart from a will or codicil) in date order, if the list in respect of each document -
 25.4.1 shows its date, general nature, names of parties and any registration number; and
 25.4.2 has attached a legible photocopy of it or of an official or registration copy of it.
- 25.5 An abstract of title -
 25.5.1 must start with a good root of title (if the good root of title must be at least 30 years old, this means 30 years old at the contract date);
 25.5.2 in the case of a leasehold interest, must include an abstract of the lease and any higher lease;
 25.5.3 *normally*, need not include a Crown grant; and
 25.5.4 need not include anything evidenced by the Register kept under the Real Property Act 1900.
- 25.6 In the case of land under old system title -
 25.6.1 in this contract 'transfer' means conveyance;
 25.6.2 the purchaser does not have to *serve* the form of transfer until after the vendor has *served* a proper abstract of title; and
 25.6.3 each vendor must give proper covenants for title as regards that vendor's interest.
- 25.7 In the case of land under limited title but not under qualified title -
 25.7.1 *normally*, the abstract of title need not include any document which does not show the location, area or dimensions of the land (for example, by including a metes and bounds description or a plan of the land);
 25.7.2 clause 25.7.1 does not apply to a document which is the good root of title; and
 25.7.3 the vendor does not have to provide an abstract if this contract contains a delimitation plan (whether in registrable form or not).
- 25.8 The vendor must give a proper covenant to produce where relevant.
- 25.9 The vendor does not have to produce or covenant to produce a document that is not in the possession of the vendor or a mortgagee.
- 25.10 If the vendor is unable to produce an original document in the chain of title, the purchaser will accept a photocopy from the Registrar General of the registration copy of that document.

26 Crown purchase money

- 26.1 This clause applies only if purchase money is payable to the Crown, whether or not due for payment.
- 26.2 The vendor is liable for the money, except to the extent this contract says the purchaser is liable for it.
- 26.3 To the extent the vendor is liable for it, the vendor is liable for any interest until completion.
- 26.4 To the extent the purchaser is liable for it, the *parties* must adjust any interest under clause 14.1.

27 Consent to transfer

- 27.1 This clause applies only if the land (or part of it) is restricted title land (land that cannot be transferred without consent under *legislation*).
- 27.2 The purchaser must properly complete and then *serve* the purchaser's part of an application for consent to transfer of the land (or part of it) *within 7* days after the contract date.
- 27.3 The vendor must apply for consent *within 7* days after *service* of the purchaser's part.
- 27.4 If consent is refused, either *party* can *rescind*.
- 27.5 If consent is given subject to one or more conditions that will substantially disadvantage a *party*, then that *party* can *rescind within 7* days after receipt by or *service* upon the *party* of written notice of the conditions.
- 27.6 If consent is not given or refused -
 27.6.1 *within 42* days after the purchaser *serves* the purchaser's part of the application, the purchaser can *rescind*; or
 27.6.2 *within 30* days after the application is made, either *party* can *rescind*.
- 27.7 If the *legislation* is the Western Lands Act 1901 each period in clause 27.6 becomes 90 days.
- 27.8 If the land or part is described as a lot in an unregistered plan, each time in clause 27.6 becomes the later of the time and 35 days after creation of a separate folio for the lot.
- 27.9 The completion date becomes the later of the completion date and 14 days after *service* of the notice granting consent to transfer.

28 Unregistered plan

- 28.1 This clause applies only if some of the land is described as a lot in an unregistered plan.
- 28.2 The vendor must do everything reasonable to have the plan registered *within 6* months after the contract date, with or without any minor alteration to the plan or any document to be lodged with the plan validly required or made under *legislation*.

- 28.3 If the plan is not registered *within* that time and in that manner -
 28.3.1 the purchaser can *rescind*; and
 28.3.2 the vendor can *rescind*, but only if the vendor has complied with clause 28.2.
- 28.4 Either *party* can serve notice of the registration of the plan and every relevant lot and plan number.
- 28.5 The completion date becomes the later of the completion date and 21 days after *service* of the notice.
- 28.6 Clauses 28.2 and 28.3 apply to a plan that is to be registered before the plan is registered.

29 Conditional contract

- 29.1 This clause applies only if a provision says this contract or completion is conditional on an event.
- 29.2 If the time for the event to happen is not stated, the time is 42 days after the contract date.
- 29.3 If this contract says the provision is for the benefit of a *party*, then it benefits only that *party*.
- 29.4 If anything is necessary to make the event happen, each *party* must do whatever is reasonably necessary to cause the event to happen.
- 29.5 A *party* can *rescind* under this clause only if the *party* has substantially complied with clause 29.4.
- 29.6 If the event involves an approval and the approval is given subject to a condition that will substantially disadvantage a *party* who has the benefit of the provision, the *party* can *rescind within 7 days* after either *party serves* notice of the condition.
- 29.7 If the *parties* can lawfully complete without the event happening -
 29.7.1 if the event does not happen *within* the time for it to happen, a *party* who has the benefit of the provision can *rescind within 7 days* after the end of that time;
 29.7.2 if the event involves an approval and an application for the approval is refused, a *party* who has the benefit of the provision can *rescind within 7 days* after either *party serves* notice of the refusal;
 29.7.3 the completion date becomes the later of the completion date and 21 days after the earliest of -
 • either *party serving* notice of the event happening;
 • every *party* who has the benefit of the provision *serving* notice waiving the provision;
 • the end of the time for the event to happen.
- 29.8 If the *parties* cannot lawfully complete without the event happening -
 29.8.1 if the event does not happen *within* the time for it to happen, either *party* can *rescind*;
 29.8.2 if the event involves an approval and an application for the approval is refused, either *party* can *rescind*;
 29.8.3 the completion date becomes the later of the completion date and 21 days after either *party serves* notice of the event happening.
- 29.9 A *party* cannot *rescind* under clauses 29.7 or 29.8 after the event happens.

These are additional clauses attached to the Contract for the Sale of Land – 2005 edition between

The Uniting Church in Australia Property Trust (NSW)

(as vendor)

and

(as purchaser)

Property: 9 Flora Street, Mascot

Dated:

30. Amendments to printed form

30.1 If there is any inconsistency between any clause in the printed form of this contract and the clauses that follow, the clauses that follow prevail. The printed form of this contract is amended as follows:

- (a) Clause 7.1.1 – by replacing “5%” with “1%”;
- (b) Clause 7.2.4 – by deleting the words “and the costs of the purchaser”;
- (c) Clause 8.1 – by deleting the words “on reasonable grounds”;
- (d) Clause 14.4 – replace with “The purchaser acknowledges the vendor is exempt from paying land tax. If the purchaser is charged land tax in respect of the property, the vendor is not liable for any component payable by the purchaser and the amount payable by the purchaser is not to be adjusted for the year current at the adjustment date nor for any period after completion of this contract.”
- (e) Clause 16.5 – by deleting the words “plus another 20% of that fee”;
- (f) Clauses 10.1-10.3, 18.6 and 23.8 – by inserting the words “or delay completion” after the word “terminate”;
- (g) Clause 18.7 – by deleting the words “none is payable” and replacing with “1% of the price per calendar month”;
- (h) Clauses 3, 12.1, 12.2, 14.4.2, 16.8, 25-29 – delete.

31. Notice to complete

31.1 If a party does not complete this contract on the completion date that party defaults under this contract and the other party, may, if it is ready, willing and able to complete, serve a notice to complete.

31.2 A notice to complete is sufficient as to time if a period of 14 days from the date of the notice to complete is allowed for completion.

31.3 If the vendor issues a notice to complete in accordance with its rights under this contract, the purchaser must pay to the vendor on completion an additional sum of \$150

(plus GST). The purchaser must pay this amount payable to the vendor by a separate bank cheque at completion of this contract.

31.4 A party that issues a notice to complete may withdraw the notice any time before the time for completion set out in the notice. A party may issue more than one notice in accordance with subclause 31.1.

31.5 The failure of the vendor to exercise its rights under a notice issued under this clause 31 is not deemed to be a waiver of any of the vendor's rights.

32. Interest for late completion

32.1 If completion takes place after the completion date (other than for the reason that the vendor was in default of a material obligation under the contract or was otherwise not ready, willing or able to complete) the purchaser must pay to the vendor on completion interest on the price less the deposit, calculated on a daily basis at 8% per annum for the period from the day following the completion date up to and including the actual date of completion.

32.2 If completion is delayed because of the vendor's default, the price does not increase for the period during which completion is delayed by the vendor.

33. Agent's commission

The purchaser warrants that it was not introduced to the property by any real estate agent other than the agent noted on the front page of this contract and indemnifies the vendor for any claim or costs whatsoever arising from a breach of this warranty by the purchaser.

34. Condition of property

34.1 Purchaser satisfied as to condition of property

The purchaser confirms to the vendor that the purchaser has had the opportunity before entering this contract to inspect the property and the purchaser warrants to the vendor that, because of the purchaser's own inspection and enquiries, the purchaser:

- (a) is satisfied as to the nature, quality, condition and state of the property;
- (b) accepts the property as it is and subject to all defects (latent or patent) and all dilapidation and infestation, if any;
- (c) is satisfied about the purposes for which the property may be used and about all restrictions and prohibitions on its development including but not limited to the minimum land dimensions for the erection of a dwelling house on the land as set out in paragraph (e) on page 5 of the Section 149 certificate annexed to this contract; and
- (d) the property is sold in its present condition and that the price paid under this contract reflects the condition of the property. The purchaser must not make any objection requisition or claim in relation to the condition of the property.

Warranty as to information

34.2 The purchaser warrants that:

- (a) no information, representation or warranty by the vendor or the vendor's agent was supplied or made with the intention or knowledge that it would be relied

upon by the purchaser, and the purchaser enters into this contract solely on the basis of its own enquiries and investigations;

- (b) no information, representation or warranty has been so relied upon;
- (c) there is no other contract, agreement or collateral warranty existing at the time of execution of this contract which relates to the property or purchase of the property by the purchaser;
- (d) this contract is the sole and full repository of the agreement between the vendor and the purchaser;
- (e) it has conducted its own detailed due diligence including any physical, environmental, legal and financial investigations and feasibility concerning the property, the vendor and the transactions detailed in this contract and that the purchaser relies entirely on the independent exercise of its own skill and judgment concerning the results of those inspections, searches, enquiries and due diligence investigations in making its decision to purchase the property.

35. Insolvency, death or bankruptcy

Corporations

- 35.1 If the purchaser (or any of them) is a company and prior to completion enters into a scheme, makes any arrangement for the benefit of creditors, an order is made to wind it up, has a liquidator, provisional liquidator, receiver, receiver manager, administrator, voluntary administrator, controller, controlling manager or official manager of it appointed, a mortgagee enters into possession of all or a substantial part of its assets or it is deemed by any relevant legislation to be unable to pay its debts then it means the purchaser defaults in the observance of an essential term of this contract and the vendor may terminate this contract in accordance with clause 9.

Natural person

- 35.2 If the purchaser is a natural person and prior to completion dies, becomes mentally ill or becomes bankrupt, the vendor may terminate this contract in accordance with clause 9.

36. Investment of deposit

Tax file number

- 36.1 The parties acknowledge that if the deposit holder is not informed of both parties' tax file numbers before or at the time the deposit holder receives the deposit, tax may be deducted from any interest earned on the deposit at the top marginal rate.

No liability

- 36.2 The vendor is not liable to pay any money to the purchaser if the deposit holder fails to invest the deposit.

37. Personal guarantee

- 37.1 This clause applies if the purchaser is a company.

Consideration

- 37.2 In consideration for the vendor entering into this contract with the purchaser, the Guarantor gives the guarantee and indemnity which follow.

Guarantee

37.3 The guarantor unconditionally and irrevocably guarantees to the vendor:

- (a) The payment of the Guaranteed Money; and
- (b) The performance of the purchaser's obligations under this contract.

Payment

37.4 If the Guaranteed Money is not paid when due, the Guarantor must immediately on demand from the vendor pay to the vendor the Guaranteed Money in the same manner and currency as the Guaranteed Money is required to be paid.

Performance

37.5 If the purchaser fails to perform its obligations under this contract when they are due, the Guarantor must immediately on demand from the vendor perform those obligations or cause the purchaser to perform its obligations under this contract.

Indemnity

37.6 If any of the Guaranteed Money (or amounts which would have been Guaranteed Money had they not been irrecoverable) is irrecoverable by the vendor:

- (a) From the purchaser; or
- (b) From the Guarantor on the basis of a guarantee,

the Guarantor unconditionally and irrevocably and as a separate and principal obligation;

- (a) Indemnifies the vendor against any claim or liability paid or incurred by the vendor in relation to the non-payment of those amounts; and
- (b) Must pay to the vendor an amount equal to those amounts.
- (c) The Guarantor indemnifies the vendor against any claim or liability, paid or incurred by the vendor in relation to:
 - (1) The failure of the purchaser to perform its obligations under this contract;
 - (2) The failure of the Guarantor to perform or cause the purchaser to perform the purchaser's obligations under this contract.

Extent of guarantee and indemnity

37.7 This guarantee remains in full force and effect until the Guaranteed Money has been paid in full and the obligations of the purchaser under this contract have been performed or discharged.

37.8 For the purposes of this guarantee, "Guaranteed Money" means all monetary liability of the purchaser to the vendor under or in relation to this contract irrespective of whether the liabilities are past or future and includes any monetary liabilities under any warranty or included in this document.

38. Confidentiality

38.1 The purchaser:

- (a) must keep all information of or used by the vendor relating to the property confidential and the vendor's transactions, operations and affairs ("Confidential Information") disclosed to the purchaser by or on behalf of the vendor, or of which the purchaser becomes aware (whether before or after the contract date); and
- (b) may disclose Confidential Information in respect of which the purchaser has an obligation of confidentiality under paragraph (a) only:
 - (1) to those of the purchaser's officers or employees or advisers who:
 - (A) have a need to know for the purpose of this contract and the transactions contemplated by it; and
 - (B) undertake to the purchaser (and, where required by the vendor, to the vendor also) a corresponding obligation of confidentiality to that undertaken by the purchaser under this clause;
 - (2) if required to do so by law or the listing rules of the Australian Stock Exchange Limited; or
 - (3) with the prior written approval of the vendor.

39. Drainage and Sewer diagrams

The vendor does not warrant the currency, accuracy or completeness of any diagram attached to this contract supplied by a competent authority disclosing or purporting to disclose the location of any drain, pipe or sewer within, over, across or within the vicinity of the property and the purchaser has made, has satisfied itself and relies upon its own enquiries in regard to the matters referred to in this clause and cannot make any objection, requisition or claim in relation to, or purport to rescind or terminate this contract in respect of, any matter which is the subject of this clause.

40. Swimming pool

- 40.1 The purchaser confirms it has satisfied itself in relation to any swimming pool and any compliance or non-compliance with the Swimming Pools Act 1992.

41. Boundary fence

- 41.1 The purchaser cannot make a claim, objection, requisition or terminate or delay completion if it should be found that any boundary of the property is not fenced or that any boundary, wall or fence of the property or any part of the improvements on the property shall not be upon the property or within such boundary.

42. Survey report and building certificate

- 42.1 The vendor does not hold a survey report for the property. The purchaser cannot make a claim, objection, requisition or rescind or terminate in respect of any matters disclosed in or ascertainable from any survey report on the property which the purchaser might obtain and without limiting the generality of this provision these matters include any encroachments on the property or the location of improvements on the property and in particular whether the provisions of the Local Government Act 1993 (as amended) and the ordinances made thereunder have been complied with.
- 42.2 The vendor discloses that the vendor has not annexed a building certificate issued under the Local Government Act in respect of the property. The purchaser shall not require the vendor to make application for or do anything toward obtaining a building

certificate in respect of the property or to otherwise comply with the requirements of the relevant council relating to the issue of a building certificate in respect of the property. The obligation of the purchaser to complete this contract is not conditional upon the issuing of a building certificate. The purchaser must complete this contract notwithstanding that the purchaser has not obtained a building certificate in respect of the property.

43. FIRB Approval

- 43.1 The purchaser warrants that the provisions of the Foreign Acquisitions and Takeovers Act 1975 requiring the obtaining of consent to this transaction do not apply to the purchaser in relation to this contract.
- 43.2 If the purchaser breaches this warranty, whether deliberately or unintentionally, the purchaser shall indemnify and compensate the vendor in respect of any loss, damage, penalty, fine or legal costs which may be incurred by the vendor as a consequence of a breach by the purchaser of the warranty in clause 43.1.

44. Warranty by the purchaser with respect to credit

- 44.1 The purchaser warrants to the vendor that either:
- (a) The purchaser does not require credit in order to pay for the property; or
 - (b) If the purchaser requires credit in order to pay for the property, the purchaser has already obtained such credit on reasonable terms acceptable to the purchaser. The purchaser cannot delay completion, terminate or rescind this contract by reason of credit not being made available to the purchaser at the date of completion.

45. Cancelled or re-arranged settlement

- 45.1 In the event settlement does not take place at the scheduled time due to the default of the purchaser or the purchaser's mortgagee and through no fault of the vendor, in addition to any other money payable by the purchaser on completion of this contract, the purchaser must pay an additional \$110 (inclusive of GST) on settlement to recover the legal costs and other expenses incurred by the vendor as a consequence of that delay.

46. Margin Scheme

- 46.1 The purchaser and vendor agree and acknowledge that the vendor shall be entitled in its absolute discretion to apply the margin scheme in the determination of GST that may be applicable to this transaction and the purchaser agrees that this clause will be deemed to be the written consent to the application of the margin scheme.
- 46.2 The vendor agrees to advise the purchaser in writing if the margin scheme has been applied before the settlement date.

47. Lease

- 47.1 Upon direction from the Purchaser, the Vendor will serve the tenant 30 days notice to vacate the property within the 5 business days of the Contract Date.

LAND AND PROPERTY INFORMATION NEW SOUTH WALES - TITLE SEARCH

FOLIO: 5/19043

SEARCH DATE	TIME	EDITION NO	DATE
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29/1/2015	9:24 AM		

VOL 5281 FOL 1 IS THE CURRENT CERTIFICATE OF TITLE

LAND

LOT 5 IN DEPOSITED PLAN 19043

LOCAL GOVERNMENT AREA BOTANY BAY

PARISH OF BOTANY COUNTY OF CUMBERLAND

TITLE DIAGRAM DP19043

FIRST SCHEDULE

THE UNITING CHURCH IN AUSTRALIA PROPERTY TRUST (N.S.W.) (AP Q909649)

SECOND SCHEDULE (1 NOTIFICATION)

1 RESERVATIONS AND CONDITIONS IN THE CROWN GRANT(S)

NOTATIONS

UNREGISTERED DEALINGS: NIL

*** END OF SEARCH ***



Administration Centre
141 Coward Street
Mascot 2020
Phone: (02) 9366 3666
Fax No.: (02) 9366 3777
DX 4108 Maroubra Junction

**PLANNING CERTIFICATE
UNDER SECTION 149(2)
ENVIRONMENTAL PLANNING AND
ASSESSMENT ACT, 1979**

Certificate No : 2015/6042
Date : 10/02/2015
Receipt No : 267645
Applicant Reference : Mascot

Property:
9 Flora Street MASCOT 2020
Description: Lot: 5 DP: 19043
Parcel No: 6439

Owner (as recorded by Council)
Uniting Church In Aust
Trustees U.C.Mascot,Botany,Eastlakes
C/-Mrs J Williams
1 Harris Street ROSEBERY NSW 2018

Applicant:
InfoTrack
DX 578 SYDNEY

MATTERS PRESCRIBED UNDER THE ENVIRONMENTAL PLANNING & ASSESSMENT ACT 1979 AND THE ENVIRONMENTAL PLANNING & ASSESSMENT REGULATION 2000 TO BE INCLUDED IN SECTION 149(2) PLANNING CERTIFICATES.

1. NAMES OF RELEVANT PLANNING INSTRUMENTS AND DCPS

- (1) The name of each environmental planning instrument that applies to the carrying out of development on the land.**

SEPP No. 1 - Development Standards
SEPP No. 6 - Number of Storeys in a Building
SEPP No. 19 - Bushland in Urban Areas
SEPP No. 21 - Caravan Parks
SEPP No. 22 - Shops and Commercial Premises
SEPP No. 30 - Intensive Agriculture
SEPP No. 32 - Urban Consolidation
SEPP No. 33 - Hazardous and Offensive Development
SEPP No. 50 - Canal Estate Development
SEPP No. 55 - Remediation of Land
SEPP No. 62 - Sustainable Aquaculture
SEPP No. 64 - Advertising and Signage
SEPP No. 65 - Design Quality of Residential flat Development
SEPP No. 70 - Affordable Housing - (Revised Schemes)
SEPP (Housing for Seniors or People with a Disability) 2004
SEPP (Building Sustainability index) "BASIX 2004"
SEPP (Major Development) 2005
SEPP (Infrastructure) 2007
SEPP (Mining, Petroleum Production and Extractive Industries) 2007
SEPP (Temporary Structures) 2007
SEPP (Repeal of Concurrence and Referral Provisions) 2008
SEPP (Exempt and Complying Development Codes) 2008
SEPP (Affordable Rental Housing) 2009
SEPP (State & Regional Development) 2011
SEPP (Three Ports) 2013

Botany Bay Local Environmental Plan 2013

- (2) The name of each proposed environmental planning instrument that will apply to the carrying out of development on the land and that is or has been the subject of community consultation or on public exhibition under the Act (unless the Director-General has notified the Council that the making of the proposed instrument has been deferred indefinitely or has not been approved).**

The following proposed environmental planning instruments apply to land within the City of Botany Bay.

Draft SEPP No.66 - Integration of Land Use and Transport

Draft SEPP (Application of Development Standard) 2004

SEPP No. 65 – Design Quality of Residential Flat Development (Draft Amendment No. 3) – Improving apartment design and affordability

Planning Proposal No. 3/2013 – to rezone all educational establishments within the City of Botany Bay from R2 Low Density Residential or R3 Medium Density Residential to SP2 – Educational Establishments and delete the height of buildings and FSRs controls from school sites. Please refer to **Attachment 3** to the rear of the Certificate for additional information.

Planning Proposal No. 1/2014 - to incorporate a new zone objective into the IN1 – General Industrial and the B5 – Business Development zones; provide additional permitted uses of 'airport-related land uses' and 'airport-related industry' on Qantas owned land and increase the floor space ratio of Qantas owned IN1 –General Industrial zoned land in Mascot. Please refer to **Attachment 3** to the rear of the Certificate for additional information.

Planning Proposal No. 2/2013 - which seeks the following amendments to the Botany Bay Local Environmental Plan 2013:

1. Insertion of new Clause 4.4C

The amendment will apply to development on sites that have an area of 2000m² or over, which are zoned R3 Medium Density Residential or R4 High Density Residential. Currently, these sites are able to obtain bonus building height and floor space ratio under Clause 4.3(2A) and 4.4B(3) of the BBLEP 2013. This Planning Proposal is to introduce a new Clause 4.4C – Building Form and Scale into the BBLEP 2013 to ensure that development applications which utilise Clauses 4.3(2A) and 4.4B take into account the surrounding development.

2. Insertion of new Clause 4.6 (d) and (e)

The amendment also seeks to restrict the application for Clause 4.6 of the BBLEP 2013 for sites that have an area of 2000m² or over, which are zoned R3 or R4. Presently, Clause 4.6 of the BBLEP 2013 allows that development standards of building height and floor space ratio to be varied from that set out in the BBLEP 2013. Clause 4.6(d) and (e) will ensure that development applications that have the benefit of Clauses 4.3(2A) and/or 4.4B(3) of the BBLEP 2013 (i.e. bonus provision) do not seek further variation to the development standards, above that permitted on the FSR Map and Height of Building Map.

*Please refer to **Attachment 3** to the rear of the Certificate for additional information.*

(3) The name of each development control plan that applies to the carrying out of development on the land.

The Botany Bay Development Control Plan 2013 applies to the carrying out of development on the land.

Please refer to the Attachment titled: Botany Bay Development Control Plan 2013 at the end of the Section 149(2) Planning Certificate for more information.

- (4) **In this clause, proposed environmental planning instrument includes a planning proposal for a LEP or draft environmental planning instrument.**

2. ZONING AND LAND USE UNDER RELEVANT LEP

For each environmental planning instrument or proposed instrument referred to in clause 1 (other than a SEPP or proposed SEPP) that includes the land in any zone (however described):

- (a) **The identity of the zone, whether by reference to a name (such as "Residential Zone" or "Heritage Area") or by reference to a number (such as "Zone No 2 (a)"),**
- (b) **the purposes for which the instrument provides that development may be carried out within the zone without the need for development consent,**
- (c) **the purpose for which the instrument provides that development may not be carried out within the zone except with development consent,**
- (d) **the purpose for which the instrument provides that development is prohibited within the zone,**

Identity of the zone effected by the environmental planning instrument or proposed instrument on the above mentioned land.

- (a) **Zone R2 Low Density Residential**
- (b) **Development which may be carried out without development consent**

Home occupations

- (c) **Development which may be carried out only with development consent**

Attached dwellings; Bed and breakfast accommodation; Boarding houses; Building identification signs; Business identification signs; Child care centres; Community facilities; Dwelling houses; Environmental protection works; Flood mitigation works; Group homes; Health consulting rooms; Hospitals; Multi dwelling housing; Neighbourhood shops; Office premises; Places of public worship; Recreation areas; Residential flat buildings; Respite day care centres; Roads; Semi-detached dwellings.

- (d) **Development which is prohibited**

Any development not specified in item (b) or (c)

Note: Some of the uses listed in (c) are only permitted in certain circumstances. Please refer to the provisions of Botany Bay Local Environmental Plan 2013, especially Part 6, for additional information on permissibility of individual land uses specified in answer (c).

- (e) **Whether or not there are any development standards applying to the land that fix minimum land dimensions for the erection of a dwelling-house on the land and, if so, the land dimensions so fixed,**

NO

Note: There are no development standards applying to an existing allotment of land that fix minimum land dimensions for the erection of a dwelling house.

- (f) **Does the land include or comprise critical habitat?**

NO

- (g) **Is the land in a conservation area?**

NO

- (h) **Is an item of environmental heritage situated on the land?**

NO

2A. ZONING AND LANDUSE UNDER STATE ENVIRONMENTAL PLANNING POLICY (SYDNEY REGION GROWTH CENTRES) 2006

To the extent that the land is within any zone (however described) under:

- (a) **Part 3 of the State Environmental Planning Policy (Sydney Region Growth Centres) 2006 (the 2006 SEPP), or**
- (b) **a Precinct Plan (within the meaning of the 2006 SEPP), or**
- (c) **a proposed Precinct Plan that is or has been the subject of community consultation or on public exhibition under the Act,**

the particulars referred to in clause 2 (a)–(h) in relation to that land (with a reference to “the instrument” in any of those paragraphs being read as a reference to Part 3 of the 2006 SEPP, or the Precinct Plan or proposed Precinct Plan, as the case requires).

The land is not affected by the provisions of State Environmental Planning Policy (Sydney Region Growth Centres) 2006.

3. COMPLYING DEVELOPMENT

- (1) The extent to which the land is land on which complying development may be carried out under each of the codes for complying development because of the provisions of clauses 1.17A (1) (c) to (e), (2), (3) and (4), 1.18 (1) (c3) and 1.19 of State Environmental Planning Policy (Exempt and Complying Development Codes) 2008.
- (2) The extent to which complying development may not be carried out on that land because of the provisions of clauses 1.17A (1) (c) to (e), (2), (3) and (4), 1.18 (1) (c3) and 1.19 of that Policy and the reasons why it may not be carried out under those clauses.
- (3) If the council does not have sufficient information to ascertain the extent to which complying development may or may not be carried out on the land, a statement that a restriction applies to the land, but it may not apply to all of the land, and that council does not have sufficient information to ascertain the extent to which complying development may or may not be carried out on the land.

Disclaimer: This certificate only responds to the preliminary question whether complying development may be carried out on the land under each of the codes for complying development under the State Environmental Planning Policy (Exempt & Complying Development Codes) 2008 ("the Policy") or whether such development is excluded because of the provisions of clauses 1.17A (1) (c) to (e), (2), (3) and (4), 1.18(1) (c3) and 1.19 of the Policy. If this certificate states that complying development may be carried out on the land under a code, particular development must also comply with the other development specific requirements of the Policy including minimum site area, minimum frontage and zoning.

Failure of the proposed development to comply with any of those specific requirements may preclude it from being complying development under the Policy.

Note: Under Clause 1.17A (1) (a) to be complying development for the purposes of any environmental planning instrument, the development must not:

- (a) be development for which development consent cannot be granted except with the concurrence of a person other than:
 - (i) the consent authority, or
 - (ii) the Director-General of the Department of Environment, Climate Change and Water as referred to in section 79B (3) of the Act.

(a) *the General Housing Code*



YES. None of the matters raised in Clauses 1.17A (1) (c) to (e), (2), (3) and (4), 1.18(1) (c3) and 1.19 of State Environmental Planning Policy (Exempt and Complying Development Codes) 2008 prevent complying development being carried out on the land under the General Housing Code under the Codes SEPP.

(b) the Rural Housing Code

The Rural Housing Code is not applicable to the Botany Bay Local Government Area.

(c) the Housing Alterations Code



YES. None of the matters raised in Clauses 1.17A (1) (c) to (e), (2), (3) and (4), 1.18(1) (c3) and 1.19 of State Environmental Planning Policy (Exempt and Complying Development Codes) 2008 prevent complying development being carried out on the land under the Housing Alterations Code under the Codes SEPP.

(d) the General Development Code



YES. None of the matters raised in Clauses 1.17A (1) (c) to (e), (2), (3) and (4), 1.18(1) (c3) and 1.19 of State Environmental Planning Policy (Exempt and Complying Development Codes) 2008 prevent complying development being carried out on the land under the General Development Code under the Codes SEPP.

(e) the General Commercial and Industrial Alterations Code



YES. None of the matters raised in Clauses 1.17A (1) (c) to (e), (2), (3) and (4), 1.18(1) (c3) and 1.19 of State Environmental Planning Policy (Exempt and Complying Development Codes) 2008 prevent complying development being carried out on the land under the General Commercial and Industrial Code under the Codes SEPP.

(f) the Commercial and Industrial (New Buildings and Additions) Code



YES. None of the matters raised in Clauses 1.17A (1) (c) to (e), (2), (3) and (4), 1.18(1) (c3) and 1.19 of State Environmental Planning Policy (Exempt and Complying Development Codes) 2008 prevent complying development being carried out on the land under the General Commercial and Industrial Code under the Codes SEPP.

(g) the Subdivisions Code



YES. None of the matters raised in 1.17A (1) (c) to (e), (2), (3) and (4), 1.18(1) (c3) and 1.19 of State Environmental Planning Policy (Exempt and Complying Development Codes) 2008 prevent complying development being carried out on the land under the Subdivisions Code under the Codes SEPP.

(h) the Demolition Code



YES. None of the matters raised in Clauses 1.17A (1) (c) to (e), (2), (3) and (4), 1.18(1) (c3) and 1.19 of State Environmental Planning Policy (Exempt and Complying Development Codes) 2008 prevent complying development being carried out on the land under the Demolition Code under the Codes SEPP.

(i) the Fire Safety Code



YES. None of the matters raised in Clauses 1.17A (1) (c) to (e), (2), (3) and (4), 1.18(1) (c3) and 1.19 of State Environmental Planning Policy (Exempt and Complying Development Codes) 2008 prevent complying development being carried out on the land under the General Commercial and Industrial Code under the Codes SEPP.

4. COASTAL PROTECTION

Whether or not the land is affected by the operation of section 38 or 39 of the Coastal Protection Act 1979, but only to the extent that the council has been so notified by the Department of Services, Technology and Administration.

NO

4A. CERTAIN INFORMATION RELATING TO BEACHES AND COASTS

- (1) In relation to a coastal council—whether an order has been made under Part 4D of the Coastal Protection Act 1979 in relation to temporary coastal protection works (within the meaning of that Act) on the land (or on public land adjacent to that land), except where the council is satisfied that such an order has been fully complied with.**
- (2) In relation to a coastal council:**
 - (a) whether the council has been notified under section 55X of the Coastal Protection Act 1979 that temporary coastal protection works (within the meaning of that Act) have been placed on the land (or on public land adjacent to that land), and**
 - (b) if works have been so placed—whether the council is satisfied that the works have been removed and the land restored in accordance with that Act.**

(3) Repealed

Not applicable to the Botany Bay Local Government Area.

4B. ANNUAL CHARGES UNDER LOCAL GOVERNMENT ACT 1993 FOR COASTAL PROTECTION SERVICES THAT RELATE TO EXISTING COASTAL PROTECTION WORKS

In relation to a coastal council—whether the owner (or any previous owner) of the land has consented in writing to the land being subject to annual charges under section 496B of the *Local Government Act 1993* for coastal protection services that relate to existing coastal protection works (within the meaning of section 553B of that Act).

Note. “Existing coastal protection works” are works to reduce the impact of coastal hazards on land (such as seawalls, revetments, groynes and beach nourishment) that existed before the commencement of section 553B of the Local Government Act 1993.

Not applicable to the Botany Bay Local Government Area.

5. MINE SUBSIDENCE

Whether or not the land is proclaimed to be a mine subsidence district within the meaning of section 15 of the Mine Subsidence Compensation Act 1961.

NO

6. ROAD WIDENING AND ROAD REALIGNMENT

Whether or not the land is affected by any road widening or road realignment under:

(a) Division 2 of Part 3 of the Roads Act 1993, or

NO

(b) any environmental planning instrument, or

NO

(c) any resolution of the council.

NO

7. COUNCIL AND OTHER PUBLIC AUTHORITY POLICIES ON HAZARD RISK RESTRICTIONS

Whether or not the land is affected by a policy:

(a) adopted by the council, or

- (b) **adopted by any other public authority and notified to the council for the express purpose of its adoption by that authority being referred to in planning certificates issued by the council,**

that restricts the development of the land because of the likelihood of land slip, bushfire, tidal inundation, subsidence, acid sulphate soils or any other risk (other than flooding).

Clause 6.1 of the Botany Bay Local Environmental Plan 2013 - Acid Sulfate Soils

Clause 6.8 of the Botany Bay Local Environmental Plan 2013 - Airspace operations

Clause 6.9 of the Botany Bay Local Environmental Plan 2013 - Development in areas subject to aircraft noise

The subject property is located within a 20-25 ANEF contour under the Australian Noise Exposure Forecast 2033 (ANEF) Chart adopted by Council on 27 March 2013. For the consequences of development on the subject property within such an affectation please refer to Council's Botany Bay Development Control Plan 2013 which can be inspected at Council's Offices or accessed on Council's website - www.botanybay.nsw.gov.au.

Botany Bay Development Control Plan 2013 - provisions of Part 3K - Contamination

Part 2 of Botany Bay Development Control Plan 2013 - any development application proposing a new structure within 10 metres either side (horizontally or vertically) of the "line of sight" (as detailed in Figures 2 & 3 of Part 2 of the DCP) requires referral to Sydney Ports Corporation for review and comment, to ensure that the proposed development does not impact on the Vessel Traffic Service system. Refer to Part 2 of the DCP for more information.

Part 3M of the Botany Bay Development Control Plan 2013 applies to land that drains into the Botany wetlands or has the potential to adversely affect the wetlands. Refer to Part 3m of the DCP for more information.

Note:

Where Council has no formal policy adopted by a resolution of Council to restrict the development due to risk, Council is prepared to volunteer some information relevant to the land. Please refer to the Section 149 (5) certificate.

7A. FLOOD RELATED DEVELOPMENT CONTROLS INFORMATION

- (1) **Whether or not development on the land or part of the land for the purposes of dwelling houses, dual occupancies, multi dwelling housing or residential flat buildings (not including development for the purposes of group homes or seniors housing) is subject to flood related development controls.**

NO

- (2) Whether or not development on that land or part of the land for any other purpose is subject to flood related development controls.

NO

- (3) Words and expressions in this clause have the same meanings as in the instrument set out in the Schedule to the Standard Instrument (Local Environmental Plans) Order 2006.

Note: If the land has not been identified as being subject to flood related development controls, it does not mean that your property is not subject to flooding/local inundation. Council has not at this time adopted a formal policy by resolution whereby flood related development controls are imposed. Council is prepared to volunteer some further information relevant to the land. Please refer to the Section 149(5) Certificate.

8. LAND RESERVED FOR ACQUISITION

Whether or not any environmental planning instrument or proposed environmental planning instrument referred to in clause 1 makes provision in relation to the acquisition of the land by a public authority, as referred to in section 27 of the Act.

NO

9. CONTRIBUTIONS PLANS

The name of each contributions plan applying to the land.

City of Botany Bay Section 94 Contributions Plan 2005-2010, Jan 06

9A. BIODIVERSITY CERTIFIED LAND

Is the land biodiversity certified land (within the meaning of Part 7AA of the Threatened Species Conservation Act 1995)?

NO

10. BIOBANKING AGREEMENTS

Has Council been notified by the Director-General of the Department of Environment, Climate Change and Water of the existence of a biobanking agreement under Part 7A of the Threatened Species Conservation Act 1995 that applies to the land to which the certificate relates?

NO

11. BUSH FIRE PRONE LAND

If any of the land is bush fire prone land (as defined in the Act)?

NO

12. PROPERTY VEGETATION PLANS

Has Council been notified by an approved person or body of the existence of a property vegetation plan under the Native Vegetation Act 2003 that applies to the land to which the certificate relates?

NO

13. ORDERS UNDER TREES (DISPUTES BETWEEN NEIGHBOURS) ACT 2006

Whether Council has been notified of an order that has been made under the Trees (Disputes Between Neighbours) Act 2006 to carry out work in relation to a tree on the land to which the certificate relates?

NO

14. DIRECTIONS UNDER PART 3A

Is there a direction by the Minister in force under section 75P (2) (c1) of the Act that a provision of an environmental planning instrument prohibiting or restricting the carrying out of a project or a stage of a project on the land under Part 4 of the Act does not have effect on the land to which the certificate relates?

NO

15. SITE COMPATIBILITY CERTIFICATES AND CONDITIONS FOR SENIORS HOUSING

(a) Whether there is a current site compatibility certificate (of which Council is aware) issued under clause 25 of State Environmental Policy (Housing for Seniors or People with a Disability) in respect of proposed development on the land?

NO

(b) If a development application granted after 11 October 2007 in respect of the land, includes as a condition of consent any terms of a kind referred to in clause 18(2) of State Environmental Planning Policy (Housing for Seniors or People with a Disability)?

NO

16. SITE COMPATIBILITY CERTIFICATES FOR INFRASTRUCTURE

Whether there is a valid site compatibility certificate (of which Council is aware), issued under clause 19 of State Environmental Planning Policy (Infrastructure) 2007 in respect of proposed development on the land?

NO

17. SITE COMPATIBILITY CERTIFICATES AND CONDITIONS FOR AFFORDABLE RENTAL HOUSING

(a) Whether there is a current site compatibility certificate (affordable rental housing), of which Council is aware, in respect of proposed development on the land?

NO

(b) If a condition of consent to a development application in respect of the land includes the terms of a kind referred to in clause 17(1) or 37(1) of State Environmental Planning Policy (Affordable Rental Housing) 2009?

NO

18. PAPER SUBDIVISION INFORMATION

(1) The name of any development plan adopted by a relevant authority that applies to the land or that is proposed to be subject to a consent ballot.

(2) The date of any subdivision order that applies to the land.

(3) Words and expressions used in this clause have the same meaning as they have in Part 16C of this Regulation.

Not applicable to the Botany Bay Local Government Area

19. SITE VERIFICATION CERTIFICATES

Whether there is a current site verification certificate, of which the council is aware, in respect of the land and, if there is a certificate, the statement is to include:

(a) The matter certified by the certificate, and

NO

Note: A site verification certificate sets out the Director-General's opinion as to whether the land concerned is or is not biophysical strategic agricultural land or critical industry cluster land—see Division 3 of Part 4AA of State Environmental Planning Policy (Mining, Petroleum Production and Extractive Industries) 2007.

(b) The date on which the certificate ceases to be current (if any), and

NO

(c) That a copy may be obtained from the head office of the Department of Planning and Infrastructure.

NO

**MATTERS PRESCRIBED BY ACTS OTHER THAN THE ENVIRONMENTAL
PLANNING & ASSESSMENT ACT 1979 TO BE INCLUDED IN SECTION 149(2)
PLANNING CERTIFICATES.**

**1. MATTERS PRESCRIBED BY SECTION 59(2) OF THE CONTAMINATED LAND
MANAGEMENT ACT 1997 AS ADDITIONAL MATTERS TO BE SPECIFIED IN A
PLANNING CERTIFICATE.**

Section 59(2) of the Contaminated Land Management Act 1997 prescribes the following additional matters that are to be specified in a planning certificate:

- (a) That the land to which the certificate relates is significantly contaminated land, if the land (or part of the land) is significantly contaminated land at the date when the certificate is issued,

NO

- (b) that the land to which the certificate relates is subject to a management order, if it is subject to such an order at the date when the certificate is issued,

NO

- (c) that the land to which the certificate relates is the subject of an approved voluntary management proposal, if it is the subject of an approved proposal at the date when the certificate is issued,

NO

- (d) that the land to which this certificate relates is subject to an ongoing maintenance order, if it is subject to such an order at the date when the certificate is issued,

NO

- (e) that the land to which this certificate relates is the subject of a site audit statement, if a copy of such statement has been provided at any time to the local authority issuing the certificate,

NO

Notes:

- (1) Section 53B requires site auditors to furnish local authorities with copies of site audit statements relating to site audits for the purposes of statutory requirements.
- (2) The information provided in (a) to (d) above is based on information provided by the Office of Environment and Heritage to the City of Botany Bay Council.
- (3) Any queries regarding the advice provided in (a) to (d) please contact the Office of Environment and Heritage on (02) 9995 5000.

Note No. 1

Section 26 of the *Nation Building and Jobs Plan (State Infrastructure Delivery) Act 2009* provides that a planning certificate must include advice about any exemption under section 23 or authorisation under section 24 of that Act if the council is provided with a copy of the exemption or authorisation by the Co-ordinator General under that Act.

Note No. 2

After the issue of this certificate Council may be prepared to provide up-to-date oral information to the applicant about matters disclosed in this certificate but if it does so Council accepts no responsibility whatsoever for the accuracy of the oral information given and no employee of the Council is authorised to bind Council by the giving of such oral information.

This information is provided pursuant to section 149 (2) of the Environmental Planning and Assessment (EPA) Act 1979 as prescribed by Schedule 4 of the EPA Regulations 2000 and is applicable as of the date of this certificate.

It is your responsibility to read all attachments to this Section 149 Planning Certificate.

Additional matters pursuant to Section 149 (5)

Additional information provided pursuant to section 149 (5) of the EPA Act 1979, is available upon application and payment of the prescribed fee. Advice will be provided for the following additional matters not included under Section 149 (2) in accordance with Section 149 (5) and 149 (6) of the Act:

- (a) information that indicates whether or not any additional hazards exist for which no policy of council exists to restrict development;
- (b) whether or not the land is affected by a Tree Preservation Order;
- (c) whether or not there are building height restrictions as a result of the operations of the Sydney Airport; and
- (d) restrictions on the use of groundwater contained within the Botany Sands Aquifer;
- (e) sites potentially affected by the Declaration of Remediation Site in relation to Botany Groundwater Declaration.

Lara Kirchner
General Manager

Per :



ATTACHMENT NO. 1
BOTANY BAY LOCAL ENVIRONMENTAL PLAN 2013

The Botany Bay Local Environmental Plan 2013 was gazetted on 21 June 2013. The Botany Bay Local Environmental Plan 2013 replaces the Botany Local Environmental Plan 1995. The Botany Bay Local Environmental Plan 2013 is a statutory planning document that sets the direction for growth in the City of Botany Bay.

The Botany Bay Local Environmental Plan 2013 is consistent with the Standard Instrument, which was introduced by the State Government in March 2006.

The Botany Bay Local Environmental Plan 2013 applies to all land within the City of Botany Bay, except for the following:

1. Industrial lands covered by the State Environmental Planning Policy (Three Ports) 2013. This Policy largely relates to industrial land at Banksmeadow and provides the planning controls for development within the land affected by the SEPP – ie the Hale Street and Banksmeadow Industrial Precincts. A copy of State Environmental Planning Policy (Three Ports) 2013 is available on the NSW State Government's legislation website: www.legislation.nsw.gov.au; and
2. Lands identified as “Deferred matter” on the Land Application Map, being land to which the Botany Local Environmental Plan 1995 still applies, as follows:
 - o 26 Tupia Street, Botany;
 - o 2, 4, 10, 12, 16 & 18 Macintosh Street & 862, 864, 866 & 868 Botany Road, Mascot; and
 - o Lot 6 DP.776212, land at corner of Wentworth Avenue and Dransfield Avenue Mascot.

The BBLEP 2013 comprises of two parts:

- Written instrument; and
- Maps

The written instrument and maps need to be viewed together to understand the provisions for your property. Detailed planning controls supporting the BBLEP 2013 are contained within the Botany Bay Development Control Plan 2013. Further information is available at (<http://www.botanybay.nsw.gov.au>).

ATTACHMENT NO. 2
BOTANY BAY DEVELOPMENT CONTROL PLAN 2013

The Botany Bay Development Control Plan 2013 was adopted by Council on 11 December 2013 and came into effect on 17 December 2013. Council at its meeting held 9 December 2014 resolved to adopt Amendment No. 1 to the Botany Bay Development Control Plan 2013. This amendment came into effect on 16 December 2014

The DCP has been prepared as Council considers it necessary or desirable to provide the guidance referred to in section 74BA(1) and for other necessary or desirable purposes as contained within section 74C of the Environmental Planning and Assessment Act. The DCP will:

- (i) Guide future development within the Botany Bay Local Government Area (LGA);
- (ii) Support the controls found within the Botany Bay Local Environmental Plan 2013; and
- (iii) Protect and enhance the public domain

The Comprehensive Botany Bay DCP 2013 replaces all the DCPs and Policies that apply to land that the BBLEP 2013 applies to, except for the following sites:

- 26 Tupia Street, Botany;
- 2, 4, 10, 12, 16 and 18 Macintosh Street and 862, 864, 866 and 868 Botany Road, Mascot; and
- Land under State Environmental Planning Policy (Three Ports) 2013.

For more information please access Council's website – www.botanybay.nsw.gov.au

ATTACHMENT NO. 3
PLANNING PROPOSALS THAT APPLY TO THE CARRYING OUT OF
DEVELOPMENT ON THE LAND

Community Consultation under Sections 56(2)(c) and 57 of the Environmental Planning & Assessment Act 1979 for Planning Proposal No. 3/2013 – Zoning of School Sites

On 11 December 2013, Council at its Meeting resolved to prepare a Planning Proposal in accordance with the *Environmental Planning & Assessment Act 1979* and *Environmental Planning & Assessment Regulation 2000* to amend the *Botany Bay Local Environmental Plan 2013*.

Objective

The Planning Proposal seeks to rezone all educational establishments from R2 – Low Density Residential or R3 – Medium Density Residential to SP2 – Education Establishments and delete the height of buildings and floor space ratio controls from the school sites identified as follows:

- Banksmeadow Public School
- Botany Public School
- Daceyville Public School
- Eastlakes Public School
- JJ Cahill Memorial High School
- Mascot Public School
- Matraville Public School
- Pagewood Public School
- St Bernard's Catholic Primary School
- St Michael's Catholic Primary School
- St Therese's Catholic Primary School

Intended Outcomes

The intended outcomes of the Planning Proposal are to:

- Retain and preserve existing community education assets (primary and secondary) within the Botany Bay LGA;
- Ensure sufficient educational establishments are provided and available for the existing and future residents;
- Create certainty for the local community in relation to the retention of community assets; and
- Enable greater input from the community into the future uses of these sites.

Council resolved on 5 November 2014 to place the Planning Proposal on community consultation.

The Planning Proposal was on community consultation from Wednesday 26 November 2014 to Friday 19 December 2014. Details on the status of the Planning Proposal can be found on Council's website (<http://www.botanybay.nsw.gov.au>).

Please note that the Minister has not delegated the functions under Section 59 (making of the LEP) of the Environmental Planning & Assessment Act 1979 to Council.

Community Consultation under Sections 56(2)(c) and 57 of the Environmental Planning & Assessment Act 1979 for Planning Proposal No. 1/2014 – Qantas and land zoned IN1 and B5

On 9 December 2013, a Planning Proposal was submitted by Qantas Airways Limited in accordance with the *Environmental Planning & Assessment Act 1979* and *Environmental Planning & Assessment Regulation 2000* to amend the *Botany Bay Local Environmental Plan 2013*.

Objective

The Planning Proposal seeks to:

- 1) Incorporate the following objective in the IN1 – General Industrial and B5 – Business Development zones of the *Botany Bay Local Environmental Plan 2013*:

To support the role of Sydney Airport and Environs as a specialised centre by providing for an international aviation gateway and airport-related land uses and industries on land located in close proximity to Sydney Airport which does not compromise the viability of adjoining industrial uses.

- 2) Introduce additional permitted uses, including ‘airport-related land uses’ and ‘airport-related industry’ to land owned by Qantas within Schedule 1 (Additional permitted uses) of the *Botany Bay Local Environmental Plan 2013*.

- 3) Amend the *Botany Bay Local Environmental Plan 2013* to provide for a maximum floor space ratio of 1.5:1 on that part of the Qantas Land zoned IN1 for ‘airport-related land uses’ or ‘airport-related industries’.

Intended Outcomes

The intended outcomes of the Planning Proposal are to:

- Explicitly acknowledge the strategic importance of the Qantas Land in supporting the role of Sydney Airport and environs;
- Allow greater flexibility in the use of the Qantas Land reflecting its strategic importance adjacent to Sydney Airport;
- Enable a range of airport-related uses on the Qantas Land that will support Sydney Airport; and
- Increase the amount of floor space permitted on the Qantas Land zoned IN1 – General Industrial for ‘airport-related land uses’ or ‘airport-related industries’.

Council resolved on 5 November 2014 to place the Planning Proposal on community consultation.

The Planning Proposal was on community consultation from 10 December 2014 to 30 January 2015. Details on the status of the Planning Proposal can be found on Council’s website (<http://www.botanybay.nsw.gov.au>).

Community Consultation under Sections 56(2)(c) and 57 of the Environmental Planning &

Assessment Act 1979 for Planning Proposal No. 2/2013 - Amendments with regard to Residential Bonus Clauses (Clause 4.3(2A) and 4.4B of the Botany Bay Local Environmental Plan 2013)

Council has resolved to prepare a Planning Proposal in accordance with the *Environmental Planning & Assessment Act 1979* and *Environmental Planning & Assessment Regulation 2000* to amend the *Botany Bay Local Environmental Plan 2013*.

The Planning Proposal seeks the following amendments:

1. Insertion of new Clause 4.4C

The amendment will apply to development on sites that have an area of 2000m² or over, which are zoned R3 Medium Density Residential or R4 High Density Residential. Currently, these sites are able to obtain bonus building height and floor space ratio under Clause 4.3(2A) and 4.4B(3) of the BBLEP 2013. This Planning Proposal is to introduce a new Clause 4.4C – Building Form and Scale into the BBLEP 2013 to ensure that development applications which utilise Clauses 4.3(2A) and 4.4B take into account the surrounding development.

2. Insertion of new Clause 4.6 (d) and (e)

The amendment also seeks to restrict the application for Clause 4.6 of the BBLEP 2013 for sites that have an area of 2000m² or over, which are zoned R3 or R4. Presently, Clause 4.6 of the BBLEP 2013 allows that development standards of building height and floor space ratio to be varied from that set out in the BBLEP 2013. Clause 4.6(d) and (e) will ensure that development applications that have the benefit of Clauses 4.3(2A) and/or 4.4B(3) of the BBLEP 2013 (i.e. bonus provision) do not seek further variation to the development standards, above that permitted on the FSR Map and Height of Building Map.

Council resolved on 4 November 2014 to place the Planning Proposal on community consultation once the Gateway decision was received by Council; which occurred on 22 December 2014.

The Planning Proposal will be on community consultation from 10 February 2015 to 13 March 2015 at Council's Administration Centre, Ground Floor, 141 Coward Street Mascot, from 8.30am to 4.30pm Monday to Friday.

For the purpose of informing the public generally, the Council will also have key exhibition material on display on Council's website www.botanybay.nsw.gov.au and at the Central Library (Westfield Shoppingtown, Banks Avenue, Eastgardens). Library hours are available on Council's website. Please note the key exhibition material at the Library and on the website is not the full statutory exhibition under the Environmental Planning and Assessment Act 1979 – the Council's Administration Centre will have the full statutory exhibition material available.

Making a submission

You are invited to make a submission in writing on the Planning Proposal. Submissions must be lodged with Council **no later than 4.30pm on 13 March 2015** and should be addressed to the General Manager, City of Botany Bay and posted to PO Box 331, Mascot, 1460; or Faxed to 9366 3777 or emailed to: council@botanybay.nsw.gov.au

Note: The City of Botany Bay is authorised to exercise the functions of the Minister for Planning and Environment under Section 56 of the Environmental Planning & Assessment Act 1979 in the making of the LEP amendment.



**PLANNING CERTIFICATE
UNDER SECTION 149 (5)
ENVIRONMENTAL PLANNING AND
ASSESSMENT ACT, 1979**

Certificate No : 6042
Date : 10/02/2015
Receipt No : 267645
Applicant Reference : Mascot
Application No : 10161

Applicant:
InfoTrack
DX 578 SYDNEY

Owner (as recorded by Council)
Uniting Church In Aust
Trustees U.C.Mascot,Botany,Eastlakes
C/-Mrs J Williams
1 Harris Street ROSEBERY NSW 2018

Property: 9 Flora Street MASCOT 2020
Description: Lot: 5 DP: 19043
Parcel No: 6439

WHEN INFORMATION PROVIDED TO SECTION 149(5) IS REQUESTED THE COUNCIL IS UNDER NO OBLIGATION TO FURNISH ANY OF THE INFORMATION SUPPLIED HEREIN PURSUANT TO THAT SECTION. COUNCIL DRAWS YOUR ATTENTION TO SECTION 149(6), WHICH STATES THAT A COUNCIL SHALL NOT INCUR LIABILITY IN RESPECT OF ANY ADVICE PROVIDED IN GOOD FAITH PURSUANT TO SUB SECTION (5). THE ABSENCE OF ANY REFERENCE TO ANY OTHER MATTER AFFECTING THE LAND SHALL NOT IMPLY THAT THE LAND IS NOT AFFECTED BY ANY MATTER NOT REFERRED TO IN THIS CERTIFICATE.

- (a) **Whether or not Council is aware of possible risk affection to the land for which no policy of Council exists to restrict development.**

NO

- (b) **Is the land affected by a Tree Preservation Order?**

YES

- (c) **Is the Council aware of possible height restrictions as a result of the operations of the Sydney Airport?**

YES

The applicant should contact Sydney Airport Corporation Limited for further information.

- (d) **Is the use of groundwater contained within the Botany Sands Aquifer restricted?**

The NSW Office of Water has published a map showing areas where the use of groundwater is restricted to various degrees including total prohibition of use in a certain area.

The applicant should contact the Office of Water for further information on (02) 82817777 or <http://www.water.nsw.gov.au/Water-management/Water-quality/Groundwater/Botany-Sand-Beds-aquifer/Botany-Sands-Aquifer/default.aspx>

Lara Kirchner
General Manager

Per :  

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RESIDENTIAL TENANCY AGREEMENT (1997 EDITION)

(Where tenancy is for a term of three years or less)

This Agreement is in 2 parts:

Part 1 - Sets out the terms of the agreement.

PART 1 PAGE 1

Part 2 - Contains the condition report in respect of the residential premises.

IMPORTANT NOTES ABOUT THIS AGREEMENT

1. The tenant is entitled to have time to read this agreement (and the completed condition report referred to in this agreement) and to obtain appropriate advice if necessary.
2. The landlord or the landlord's agent must give the tenant a copy of the "The Renting Guide: A guide for landlords and tenants". That book explains both parties' rights and obligations under this agreement.
3. The landlord is required to give the tenant a copy of this agreement for the tenant to keep.

TERMS OF AGREEMENT

THIS AGREEMENT is made on 25 / 3 / 20 03 at ROSEBERY N.S.W.

BETWEEN LANDLORD:

(Name/s) THE UNITING CHURCH IN AUSTRALIA MASCOT, BOTANY (A.B.N.)

~~PERISH (BECKENHAM)~~

Address: C/- Rosebery Real Estate Pty. Limited

(Name of landlord's agent) Rosebery Real Estate Pty. Limited (A.B.N.) 94000601963

(Address) 403 Gardeners Road, ROSEBERY

AND TENANT:

(Name/s) Julio Cesar GONZALEZ & Maria A. FUENTES

~~Other people who will occupy the premises may be listed here~~

PREMISES:

The landlord gives the tenant the right to occupy the premises at NO. 9 Flora Street, MASCOT

and the following parking space ~~and storage space~~ Lock-up garage

The premises are unfurnished/~~the premises are furnished with the following items~~
(Cross out whichever is not needed.)

No more than 4 persons may ordinarily live in the premises at any one time.

RENT:

The rent is \$ 400.00 payable every week starting on 4 / 4 / 2003

The tenant must pay in advance on the Friday of every week

The rent must be paid:

(a) to the ~~landlord~~ landlord's agent, at 403 Gardeners Road, ROSEBERY

(b) ~~at any other reasonable place the landlord names in writing~~; or

(c) ~~by direct deposit to the landlord's nominated bank account~~

Payment must be made by the following method (e.g. in cash, by cheque, ~~by direct deposit to the landlord's nominated bank account~~ set out here) (if however a cheque has been dishonoured once, no further payments by cheque will be accepted)

TERM:

The term of this agreement is SIX (6) Months beginning on 4 / 4 / 2003 and ending on 3 / 10 / 20 03

CONTINUATION:

At the end of the term the tenant can stay in the residential premises at the same rent (or at an increased rent if the rent is increased in accordance with the Residential Tenancies Act 1987) but otherwise under the same terms unless or until the agreement is ended in accordance with the Residential Tenancies Act 1987.

RENTAL BOND: (cross out if there is not going to be a bond)

A rental bond of \$ 1600.00 must be paid by the tenant to the landlord or the landlord's agent on or before signing this agreement.

Tradesperson/s (see "URGENT REPAIRS", clauses 16 & 17)

This Agreement is in 2 parts:

Part 1 – Sets out the terms of the agreement.

Part 2 – Contains the residential premises condition report.

RESIDENTIAL TENANCY AGREEMENT (1997 EDITION)

(Where tenancy is for a term of three years or less)

THE AGREEMENT

1. The landlord agrees to give the tenant:

- 1.1 a copy of this agreement at or before the time the agreement is signed and given by the tenant to the landlord or a person on the landlord's behalf; and
- 1.2 a copy of the agreement signed by both the landlord and the tenant as soon as reasonably practicable.

RENT

2. The tenant agrees to pay rent on time.

3. The landlord agrees to provide a receipt for any rent paid to the landlord or to ensure that the landlord's agent provides a receipt for any rent paid to the agent. If the rent is not paid in person, the landlord agrees only to make the receipt available for collection by the tenant or to post it to the tenant. (The landlord is not required to provide or make available a receipt if rent is paid into the landlord's account.)

PAYMENT OF COUNCIL RATES, LAND TAX, WATER AND OTHER CHARGES

4. The landlord agrees to pay:

- 4.1 Council rates; and
- 4.2 for water, other than water that the tenant has agreed to pay for under clauses 5.3 and 5.4 of this agreement; and
- 4.3 land taxes; and
- 4.4 the cost of installing any meters to measure the supply of water, electricity or gas; and
- 4.5 charges under any other Act for the residential premises.

5. The tenant agrees to pay:

- 5.1 for electricity; and
- 5.2 for gas; and
- 5.3 for excess water; and
- 5.4 any other charge for water set out in the additional terms of this agreement if the charge for water is calculated according to the metered amount of water consumed and there is no minimum rate chargeable; and
- 5.5 any excess garbage or sanitary charges; and
- 5.6 any charges for pumping out a septic system.

POSSESSION OF THE PREMISES

6. The landlord agrees:

- 6.1 to make sure the residential premises are vacant so the tenant can move in on the date agreed; and
- 6.2 there is no legal reason that the landlord knows about, or should know about when signing this agreement, why the premises cannot be used as a residence for the term of this agreement.

TENANT'S RIGHT TO QUIET ENJOYMENT

7. The landlord agrees:

- 7.1 that the tenant will have quiet enjoyment of the residential premises without interruption by the landlord or any person claiming by, through or under the landlord or having superior title to that of the landlord; and

- 7.2 that the landlord or the landlord's agent will not interfere, or cause or permit any interference, with the reasonable peace, comfort or privacy of the tenant in using the premises.

USE OF THE PREMISES

8. The tenant agrees:

- 8.1 not to use the residential premises, or cause or permit the premises to be used, for any illegal purpose; and
- 8.2 not to cause or permit a nuisance; and
- 8.3 not to interfere, or cause or permit interference, with the reasonable peace, comfort or privacy of neighbours.

LANDLORD'S ACCESS TO THE PREMISES

9. The landlord, the landlord's agent or any person authorised in writing by the landlord, during the currency of this agreement, may only enter the residential premises in the following circumstances:

- 9.1 in an emergency (including entry for the purpose of carrying out urgent repairs); or
- 9.2 if the Residential Tenancies Tribunal so orders; or
- 9.3 if there is good reason for the landlord to believe the premises are abandoned; or
- 9.4 to inspect the premises, if the tenant gets 7 days' notice (no more than 4 inspections are allowed in any period of 12 months); or
- 9.5 to carry out necessary repairs, if the tenant gets 2 days' notice on each occasion; or
- 9.6 to show the premises to prospective buyers or mortgagees on a reasonable number of occasions, if the tenant gets reasonable notice on each occasion; or
- 9.7 to show the premises to prospective tenants on a reasonable number of occasions if the tenant gets reasonable notice on each occasion (this is only allowed during the last 14 days of the agreement); or
- 9.8 if the tenant agrees.

10. If a person has power to enter the residential premises under clause 9.4, 9.5, 9.6 or 9.7 of this agreement the person:

- 10.1 must not enter the premises on a Sunday or a public holiday, unless the tenant agrees; and
- 10.2 may enter the premises only between the hours of 8.00 a.m. and 8.00 p.m., unless the tenant agrees to another time.

11. Except in an emergency (including to carry out urgent repairs), a person other than the landlord or the landlord's agent must produce to the tenant the landlord's or the landlord's agent's written permission to enter the residential premises.

CLEANLINESS, REPAIRS AND DAMAGE TO THE PREMISES

12. The landlord agrees:

- 12.1 to make sure the residential premises are reasonably clean and fit to live in; and
- 12.2 to keep the premises in reasonable repair, considering the age of, the amount of rent paid for and the prospective life of the premises.

13. The tenant agrees:

- 13.1 to keep the residential premises reasonably clean; and
- 13.2 to notify the landlord as soon as practicable of any damage to the premises; and
- 13.3 not to intentionally or negligently cause or permit any damage to the premises; and
- 13.4 when the agreement ends, to leave the premises as nearly as possible in the same condition (fair wear and tear excepted) as set out in the condition report for the residential premises that forms part of this agreement.

NOTE: The condition report that forms part of this agreement is the condition report set out in Part 2 of this agreement unless:

- the agreement is a renewed agreement; and
- the landlord and tenant have agreed that clause 28 of this agreement applies; and
- a date has been inserted in clause 28, in which case the specified earlier agreement forms part of this agreement.

ALTERATIONS AND ADDITIONS TO THE PREMISES

14. The tenant agrees:

- 14.1 not to attach any fixture or renovate, alter or add to the residential premises without the landlord's written permission; and
- 14.2 not to remove, without the landlord's written permission, any fixture attached by the tenant; and
- 14.3 to notify the landlord of any damage caused by removing any fixture attached by the tenant; and
- 14.4 to repair any damage caused by removing the fixture or compensate the landlord for the cost of repair, if the landlord asks.

15. The landlord agrees to compensate the tenant as soon as possible for the value of a fixture attached by the tenant if the landlord refuses to allow its removal.

URGENT REPAIRS

16. The landlord agrees to pay the tenant, within 14 days after receiving written notice from the tenant, any reasonable costs (not exceeding \$500) the tenant has incurred for making urgent repairs (of the type set out below) so long as:

- 16.1 the damage was not caused as a result of a breach of this agreement by the tenant; and
- 16.2 the tenant gives or makes a reasonable attempt to give the landlord notice of the damage; and
- 16.3 the tenant gives the landlord a reasonable opportunity to make the repairs; and
- 16.4 the tenant makes a reasonable attempt to have any appropriate tradesperson named in this agreement make the repairs; and
- 16.5 the repairs are carried out, where appropriate, by licensed or properly qualified persons; and
- 16.6 the tenant as soon as possible gives or tries to give the landlord written details of the repairs, including the cost and the receipts for anything the tenant pays for.

17. The type of urgent repairs to the residential premises for which the landlord agrees to make payment are repairs to:

- 17.1 a burst water service; or
- 17.2 a blocked or broken lavatory system; or
- 17.3 a serious roof leak; or
- 17.4 a gas leak; or
- 17.5 a dangerous electrical fault; or
- 17.6 flooding or serious flood damage; or
- 17.7 serious storm or fire damage; or
- 17.8 a failure or breakdown of the gas, electricity or water supply to the premises; or

17.9 a failure or breakdown of any essential service on the premises for hot water, cooking, heating or laundering; or

17.10 any fault or damage that causes the premises to be unsafe or not secure.

Tradesperson/s (complete details here or page 1)

LOCKS AND SECURITY DEVICES

18. The landlord agrees:

- 18.1 to provide and maintain locks or other security devices necessary to keep the residential premises reasonably secure; and
- 18.2 not to alter, remove or add any lock or other security device without reasonable excuse (which includes an emergency or an order of the Residential Tenancies Tribunal) unless the tenant agrees; and
- 18.3 to give the tenant a copy of the key or opening device or information to open any lock or security device which is added or altered, except where the tenant agrees not to be given a copy or the Tribunal so orders.

19. The tenant agrees:

- 19.1 not to alter, remove or add any lock or other security device without reasonable excuse (which includes an emergency or an order of the Residential Tenancies Tribunal) unless the landlord agrees; and
- 19.2 to give the landlord a copy of the key or opening device or information to open any lock or security device which is altered or added, except where the landlord agrees not to be given a copy or the Tribunal so orders.

TENANT'S RESPONSIBILITY FOR THE ACTIONS OF OTHERS

20. The tenant agrees to be responsible to the landlord for any act or omission by any person the tenant allows on the residential premises who breaks any of the terms of the agreement.

RIGHT TO ASSIGN OR SUB-LET

21. A tenant may with the landlord's prior permission assign the whole or part of the tenant's interest under this agreement or sub-let the residential premises.

22. The landlord agrees not to charge for giving permission other than for the landlord's reasonable expenses in giving permission.

LANDLORD'S CHANGE OF ADDRESS

23. The landlord agrees:

- 23.1 if the address of the landlord changes (and the landlord does not have an agent), to give the tenant notice in writing of the change within 14 days; and
- 23.2 if the name or business address of the landlord's agent changes or the landlord appoints an agent, to give the tenant notice in writing of the change or the agent's name or business address, as appropriate, within 14 days; and
- 23.3 if the landlord or landlord's agent is a corporation and the name of the secretary or other responsible agent of the corporation changes or the address of the registered office of the corporation changes, to give the tenant notice in writing of the change within 14 days.

CHANGE OF ADDRESS OF CERTAIN TENANTS

24. The tenant (who is a corporation other than a statutory corporation) **agrees**, if the address of the registered office of the tenant changes, to give the landlord notice in writing of the changed address.

COPY OF CERTAIN BY-LAWS TO BE PROVIDED

25. The landlord agrees to give to the tenant within 7 days of entering into this agreement a copy of the by-laws applying to the residential premises if they are premises under the Strata Schemes Management Act 1996, the Community Land Development Act 1989 or the Community Land Management Act 1989.

MITIGATION OF LOSS

26. The rules of law relating to mitigation of loss or damage on breach of a contract apply to a breach of this agreement. (For example, if the tenant breaches this agreement the landlord will not be able to claim damages for loss which could have been avoided by reasonable effort by the landlord.)

RENTAL BOND

27. The landlord agrees that where the landlord or the landlord's agent applies to the Rental Bond Board or the Residential Tenancies Tribunal for payment of the whole or part of the rental bond to the landlord, then the landlord or the landlord's agent will provide the tenant with details of the amount claimed and with copies of any quotations, accounts and receipts that are relevant to the claim.

AGREEMENT TO USE PREVIOUS CONDITION REPORT

28. The landlord and tenant agree that the condition report included in a residential tenancy agreement entered into by the tenant and dated
(insert a date if the landlord and tenant agree to this clause) forms part of this agreement.

ADDITIONAL TERMS

Additional terms may be included in this agreement if:

- (a) both the landlord and tenant agree to the terms; and
- (b) they do not conflict with the Residential Tenancies Act 1987 or any other Act; and
- (c) they do not conflict with the standard terms of this agreement.

ANY ADDITIONAL TERMS ARE NOT REQUIRED BY LAW AND ARE NEGOTIABLE

ADDITIONAL TERM ABOUT WATER (Cross out this clause if not applicable)

29. The Tenant agrees to pay for all water used during the term of the agreement (in addition to any excess water for which the tenant has agreed to pay under clause 5.3) where the charge for the water is calculated according to the metered amount of water consumed and there is no minimum rate chargeable.

TENANTS CARE AND USE OF THE PREMISES

30. Further to clause 13, the tenant agrees:

- 30.1** To clean the premises regularly with special attention to the kitchen, bathroom and appliances;
- 30.2** To put nothing down any sink, toilet or drain likely to cause obstruction or damage;
- 30.3** To wrap up and place garbage in a suitable container;
- 30.4** To keep the grounds and garden tidy and free of rubbish;
- 30.5** To take special care of the items let with the premises including any furniture, furnishings and appliances;
- 30.6** To do no decorating that involves painting, marking or defacing the premises or fixing posters without the prior written consent of the landlord;
- 30.7** To keep no animals or birds on the premises without prior written consent of the landlord;
- 30.8** To ensure that nothing is done that may prejudice any insurance policy or increase the premium payable under any insurance policy held by the landlord in relation to the premises; (A copy of which policy will be made available to the tenant upon request); and

- 30.9** To notify the landlord promptly of any infectious disease or the presence of rats, cockroaches, fleas or other pests.

TELEPHONE SERVICE

31. The tenant agrees:

- 31.1** To leave, in the same manner of connection or operation, any telephone service installed in the premises at the commencement of the agreement;
- 31.2** To compensate the landlord as soon as possible for any reconnection expenses incurred as a result of the tenant's actions or omissions;
- 31.3** To sign and deliver a transfer of the service to the landlord or as they may direct on termination of the agreement.

RENTAL BOND

32. The tenant agrees not to apply any rental bond towards payment of the rent without the prior written consent of the landlord.

OCCUPANTS

33. The tenant agrees:

- 33.1** Not to part with possession other than in accordance with the provisions of this agreement or the Residential Tenancies Act; and
- 33.2** To ensure that occupants and other persons who come on to the premises with the tenant's consent comply with the conditions of the agreement.

TERMINATION

34. The tenant agrees, upon termination of the agreement, to promptly and peacefully deliver up vacant possession of the premises, which shall include the handing over of all keys, and to notify the landlord or the landlord's agent of the tenant's forwarding address.

35. Notwithstanding any termination of the agreement, the tenant acknowledges that they may be liable to pay, as compensation to the landlord, an amount equivalent to the rent until such time as all keys are returned to the landlord or the landlord's agent.

36. The landlord and the tenant agree that:

- 36.1** Any action by the landlord or the tenant to terminate the agreement shall not affect any claim for compensation in respect of a breach of the agreement; and
- 36.2** The acceptance of or demand for rent or other money by the landlord after service of a termination notice does not operate as a waiver of that notice nor does it evidence the creation of a new tenancy.
- 36.3** It is a fundamental and essential term of this Agreement that the tenant shall pay rent as and when it falls due and that the landlord shall be entitled to claim prospective damages for loss of future rent in the event of a termination of this Agreement on the grounds of a breach of this condition.

STATUTES, BY-LAWS AND SPECIAL CONDITIONS – FLATS

37. The tenant agrees:

- 37.1** To observe all relevant statutes, statutory regulations and by-laws relating to health, safety, noise and other housing standards with respect to the premises; and
- 37.2** Where the premises are subject to the Strata Schemes Management Act 1996, to observe and comply with the Strata Scheme By-laws set out in Schedule 1 of the agreement together with any other By-laws forming part of this agreement.
- 37.3** Where the premises are a flat (not subject to the Strata Schemes Management Act 1996) the tenant agrees to comply with clauses 1 to 5 (1), 6 to 13 and 15 to 17 of Schedule 1 of the agreement as if the words "an owner or occupier of a lot" and "owner or occupier" were replaced

by the words "the tenant", the word "lot" with the word "flat", the words "common property" with the words "common area", the words "owners corporation" with the words "landlord", the words "owners lot" with the words "tenants flat" and the words "executive committee" with the word "landlord".

SCHEDULE 1

STRATA SCHEMES BY-LAWS/SPECIAL CONDITIONS - FLATS

- By-law 1. Noise.** An owner or occupier of a lot must not create any noise on the parcel likely to interfere with the peaceful enjoyment of the owner or occupier of another lot or of any person lawfully using common property.
- By-law 2. Vehicles.** An owner or occupier of a lot must not park or stand any motor or other vehicle on common property except with the written approval of the owners corporation.
- By-law 3. Obstruction of common property.** An owner or occupier of a lot must not obstruct lawful use of common property by any person.
- By-law 4. Damage to lawns and plants on common property.** An owner or occupier of a lot must not:
- damage any lawn, garden, tree, shrub, plant or flower being part of or situated on common property, or
 - use for his or her own purposes as a garden any portion of the common property.
- By-law 5. Damage to common property.**
- An owner or occupier of a lot must not mark, paint, drive nails or screws or the like into, or otherwise damage or deface, any structure that forms part of the common property without the approval in writing of the owners corporation.
 - An approval given by the owners corporation under subclause (1) cannot authorise any additions to the common property.
 - This by-law does not prevent an owner or person authorised by an owner from installing:
 - any locking or other safety device for protection of the owner's lot against intruders, or
 - any screen or other device to prevent entry of animals or insects on the lot, or
 - any structure or device to prevent harm to children.
 - Any such locking or safety device, screen, other device or structure must be installed in a competent and proper manner and must have an appearance, after it has been installed, in keeping with the appearance of the rest of the building.
 - Despite section 62, the owner of a lot must maintain and keep in a state of good and serviceable repair any installation or structure referred to in subclause (3) that forms part of the common property and that services the lot.
- By-law 6. Behaviour of owners and occupiers.** An owner or occupier of a lot when on common property must be adequately clothed and must not use language or behave in a manner likely to cause offence or embarrassment to the owner or occupier of another lot or to any person lawfully using common property.
- By-law 7. Children playing on common property in building.** An owner or occupier of a lot must not permit any child of whom the owner or occupier has control to play on common property within the building or, unless accompanied by an adult exercising effective control, to be or to remain on common property comprising a laundry, car parking area or other area of possible danger or hazard to children.
- By-law 8. Behaviour of invitees.** An owner or occupier of a lot must take all reasonable steps to ensure that invitees of the owner or occupier do not behave in a manner likely to interfere with the peaceful enjoyment of the owner or occupier of another lot or any person lawfully using common property.
- By-law 9. Depositing rubbish and other material on common property.** An owner or occupier of a lot must not deposit or throw on the common property any rubbish, dirt, dust or other material likely to interfere with the peaceful enjoyment of the owner or occupier of another lot or of any person lawfully using the common property.
- By-law 10. Drying of laundry items.** An owner or occupier of a lot must not, except with the consent in writing of the owners corporation, hang any washing, towel, bedding, clothing or other article on any part of the parcel in such a way as to be visible from outside the building other than on any lines provided by the owners corporation for the purpose and there only for a reasonable period.
- By-law 11. Cleaning windows and doors.** An owner or occupier of a lot must keep clean all glass in windows and all doors on the boundary of the lot, including so much as is common property.
- By-law 12. Storage of inflammable liquids and other substances and materials.**
- An owner or occupier of a lot must not, except with the approval in writing of the owners corporation, use or store on the lot or on the common property any inflammable chemical, liquid or gas or other inflammable material.
 - This by-law does not apply to chemicals, liquids, gases or other material used or intended to be used for domestic purposes, or any chemical, liquid, gas or other material in a fuel tank of a motor vehicle or internal combustion engine.
- By-law 13. Moving furniture and other objects on or through common property.** An owner or occupier of a lot must not transport any furniture or large object through or on common property within the building unless sufficient notice has first been given to the executive committee so as to enable the executive committee to arrange for its nominee to be present at the time when the owner or occupier does so.
- By-law 14. Floor coverings.**
- An owner of a lot must ensure that all floor space within the lot is covered or otherwise treated to an extent sufficient to prevent the transmission from the floor space of noise likely to disturb the peaceful enjoyment of the owner or occupier of another lot.
 - This by-law does not apply to floor space comprising a kitchen, laundry, lavatory or bathroom.

By-law 15. Garbage disposal.

An owner or occupier of a lot:

- (a) must maintain within the lot, or on such part of the common property as may be authorised by the owners corporation, in clean and dry condition and adequately covered a receptacle for garbage, and
- (b) must ensure that before refuse is placed in the receptacle it is securely wrapped or, in the case of tins or other containers, completely drained, and
- (c) for the purpose of having the garbage collected, must place the receptacle within an area designated for that purpose by the owners corporation and at a time not more than 12 hours before the time at which garbage is normally collected, and
- (d) when the garbage has been collected, must promptly return the receptacle to the lot or other area referred to in paragraph (a),
- (e) must not place any thing in the receptacle of the owner or occupier of any other lot except with the permission of that owner or occupier, and
- (f) must promptly remove any thing which the owner or occupier or garbage collector may have spilled from the receptacle and must take such action as may be necessary to clean the area within which that thing was spilled.

By-law 16. Keeping of animals.

- (1) Subject to section 49 (4), an owner or occupier of a lot must not, without the approval in writing of the owners corporation, keep any animal on the lot or the common property.
- (2) The owners corporation must not unreasonably withhold its approval of the keeping of an animal on a lot or the common property.

By-law 17. Appearance of lot.

- (1) The owner or occupier of a lot must not, without the written consent of the owners corporation, maintain within the lot anything visible from outside the lot that, viewed from outside the lot, is not in keeping with the rest of the building.
- (2) This by-law does not apply to the hanging of any washing, towel, bedding, clothing or other article as referred to in By-law 10.

By-law 18. Notice - Board. An owners corporation must cause a notice board to be affixed to some part of the common property.

By-law 19. Change in use of lot to be notified. An occupier of a lot must notify the owners corporation if the occupier changes the existing use of the lot in a way that may affect the insurance premiums for the strata scheme (for example, if the change of use results in a hazardous activity being carried out on the lot, or results in the lot being used for commercial or industrial purposes rather than residential purposes).

NOTES

DEFINITIONS

1. In this agreement:

"landlord" means the person who grants the right to occupy residential premises under this agreement, and includes the person's heirs, executors, administrators and assigns;

"landlord's agent" means a person who acts as the agent of the landlord and who (whether or not the person carries on any other business) carries on business as an agent for:

- (a) the letting of residential premises; or
- (b) the collection of rents payable for any tenancy of residential premises;

"regulations" means regulations under the Residential Tenancies Act 1987;

"rental bond" means money paid by the tenant as security to carry out this agreement;

"residential premises" means any premises or part of premises (including any land occupied with the premises) used or intended to be used as a place of residence;

"tenancy" means the right to occupy residential premises under this agreement;

"tenant" means the person who has the right to occupy residential premises under this agreement, and includes the person's heirs, executors, administrators and assigns.

NOTES ON ENDING THE TENANCY

2. The first step to end a tenancy is, almost always, for the landlord or the tenant to give a notice of termination. The tenancy ends when the tenant moves out, on or after the day specified in the notice, or when the Residential Tenancies Tribunal orders the tenancy to end.

NOTICES OF TERMINATION

3. (1) A notice of termination must:

- (a) be in writing; and
- (b) state the address of the rented premises; and
- (c) be signed and dated; and
- (d) allow the required period of time; and
- (e) give the date the tenant intends to, or is requested to, move out on; and
- (f) give the reasons for ending the agreement (if any); and
- (g) be properly given.

- (2) If the notice is given by or on behalf of a landlord, the notice must state that "information about the tenant's rights and obligations can be found in the residential tenancy agreement".

HOW NOTICES ARE PROPERLY GIVEN

4. (1) A notice of termination given to a tenant may be:

- (a) posted to the tenant's home; or
- (b) given to the tenant personally; or
- (c) given to a person aged over 16 who normally pays the rent; or
- (d) given to a person aged over 16 at the premises to pass on to the tenant.

(2) A notice of termination given to a landlord may be:

- (a) posted to the landlord's address; or
- (b) given to the landlord (or to the landlord's agent) personally; or
- (c) posted or faxed to the landlord's agent's place of business; or
- (d) given to a person aged over 16 who normally collects the rent.

THE LANDLORD AND TENANT ENTER INTO THIS AGREEMENT (WHICH INCLUDES THE CONDITION REPORT)
AND AGREE TO ALL ITS TERMS.

SIGNED BY THE LANDLORD

In the presence of

(Name of witness)

(Signature of witness)



ROSEBERY REAL ESTATE PTY LTD
403 GARDENERS ROAD
ROSEBERY NSW 2018

(Signature of landlord)

CI-Agent

SIGNED BY THE TENANT

In the presence of

(Name of witness)

(Signature of witness)

(Signature of tenant)

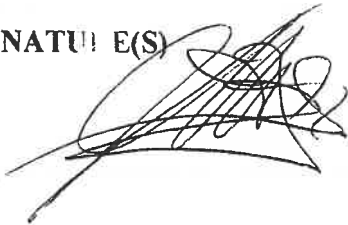
The tenant acknowledges that, at or before the time of signing this residential tenancy agreement, the tenant was given a copy of "The Renting Guide: A guide for landlords and tenants".

(Signature of tenant)

ADDITIONAL TERMS & CONDITIONS

- . NO PET (NAMELY CATS OR DOGS) ARE ALLOWED ON THESE PREMISES AT ANY TIME (UNLESS A LETTER OF AUTHORISATION IS SIGNED BETWEEN THE LANDLORD/AGENT & THE TENANT, & ATTACHED TO THE LEASE).
- . THE TENANT IS RESPONSIBLE TO REPORT ANY LEAKING TAPS OR ELECTRICAL PROBLEMS TO THE OFFICE.
- . THE TENANT SHALL BE RESPONSIBLE FOR MAINTAINING THE GROUNDS AND MOVING THE LAWNS AT ALL TIMES.
- . THE OWNER HAS THE RIGHT TO COLLECT ANY WATER USAGE INCURRED BY THE TENANT AS PER THE LEASE AGREEMENT.
- . THE TENANT WILL TAKE REASONABLE CARE OF THE PREMISES AND WILL MAINTAIN CLEANLINES, WITH ATTENTION GIVEN TO THE FOLLOWING ITEMS; KITCHEN & BATHROOM.
- . NO WORK OR REPAIRS ARE TO BE CARRIED OUT ON THE PROPERTY WITHOUT NOTIFYING THE LANDLORD/AGENT.
- . THE LANDLORD IS NOT RESPONSIBLE FOR ANY EXPENSES INCURRED BY THE TENANT FOR ANY TELEPHONE INSTALLATIONS OR CONNECTIONS.
- . NO NAILS OR HOOKS ARE TO BE PLACED ON THE WALLS THROUGHOUT THE PROPERTY OTHER THAN WHATS ALREADY THERE OR NOTED ON THE CONDITION REPORT.
- . THE TENANT IS RESPONSIBLE FOR THE REPLACEMENT OF LIGHT GLOBES & FLUORESCENT LIGHTS OR ANY OTHER FORM OF LIGHT GLOBES THROUGHOUT THE PROPERTY BOTH INSIDE & OUTSIDE.

SIGNATURE(S)



DATE



02/4/03

one is not entered into, although an agreement can be a continuing one from the beginning.

HOW TO END A FIXED TERM AGREEMENT

6. A fixed term agreement may be ended for the following reasons, provided that a least 14 days' notice is given:
- (a) if the tenant breaks one of the agreement's terms;
 - (b) if the tenant is more than 14 days in arrears of rent;
 - (c) if the landlord breaks one of the agreement's terms;
 - (d) if the landlord or tenant want to end the tenancy at the end of a fixed term agreement (in which case, notice can be given until the final day of the fixed term period, otherwise the agreement becomes a continuing agreement).

HOW TO END A CONTINUING AGREEMENT

7. (1) Unlike fixed term agreements, the amount of notice that a tenant or a landlord must give to end a continuing agreement is not always the same.
- (2) A continuing agreement may be ended by a landlord in the following ways:
- (a) without stating a reason (in which case at least 60 days' notice must be given);
 - (b) on exchange of a sale contract that requires vacant possession of the rented premises (in which case at least 30 days' notice must be given);
 - (c) if the tenant breaks one of the agreement's terms or is more than 14 days in arrears of rent (in which case at least 14 days' notice must be given).

WARNING

9. It is an offence for any person to obtain possession of the premises without an order of the Residential Tenancies Tribunal if the tenant does not willingly move out. Fines and compensation can be ordered by a court in relation to such offences.

RENT INCREASES

10. (1) The landlord cannot increase the rent during the fixed term unless the agreement sets out the amount of the increase or the method of calculating the amount of the rent increase.
- (2) The tenant must get 60 days' notice in writing if the landlord wants to increase the rent. This applies even when the agreement provides for, or permits, a rent increase. Where a notice of an increase has been given and the landlord and tenant subsequently agree to a lesser increase than in the notice, the landlord does not need to give a further 60 days' notice.
- (3) The tenant can apply to the Residential Tenancies Tribunal within 30 days of getting the notice of the rent increase for an order that the rent increase is excessive, having regard to the general market level of rents for similar premises in similar locations.
- (4) If the landlord has reduced or withdrawn any goods, services or facilities, the tenant can at any time apply to the Tribunal for an order that the rent is excessive.

WHERE TO GET HELP

For information about this agreement or help with any tenancy problem telephone the Department of Consumer Affairs **Tenancy Service**:

Telephone: (02) 377 9100 Toll Free: (1800) 451 301

If you need an **Interpreter** telephone:

Sydney: 221 1111, or 13 1450 Nation-wide

They will contact the Tenancy Service for you.

ENGLISH**ARABIC****مَنْ أَيْنَ تَحْصِلُ عَلَى مَسَاعَدَةٍ**

للحصول على معلومات حول هذه الاتفاقية أو على مساعدة عن حل إحدى مشاكل الاستئجار اتصل هاتفياً بـ **Department of Consumer Affairs Tenancy Service**:

Telephone: (02) 377 9100 Toll Free: (1800) 451 301

وإذا كنت بحاجة إلى مترجم اتصل بـ: سدي ٢٢١ ١١١١

نيوكاسل 13 1450 ولونغونغ 13 1450

وهم يقومون بالاتصال بخدمة Tenancy Service نيابة عنك.

你向何處求助**CHINESE**

有關本合約或有關租賃問題的任何幫助，請電洽：房屋署租賃服務部

Department of Consumer Affairs **Tenancy Service**:

Telephone: (02) 377 9100 Toll Free: (1800) 451 301

如果你需要傳譯人員請電：

雪梨：(02) 221 1111 紐卡索：13 1450 五龍岡：13 1450

他們會代你電洽租賃服務部

GDJE MOŽETE DOBITI POMOĆ**CROATIAN**

Za informaciju u vezi ovog ugovora ili u vezi pomoći oko bilo kakvog stanarskog problema molimo telefonirajte **Department of Consumer Affairs Tenancy Service**:

Telefon: (02) 377 9100 Besplatan Poziv (Toll Free): (1800) 451 301

Ako trebate **Tumača** telefonirajte na slijedeće brojeve:

Sydney: 221 1111, Newcastle: 13 1450 Wollongong: 13 1450

Oni će kontaktirati Stanarsku službu u Vaše ime.

A CHI RIVOLGERSI PER ASSISTENZA**ITALIAN**

Per informazioni su questo accordo o per ottenere assistenza se si hanno problemi relativamente ad un rapporto d'affitto, si può telefonare al **Tenancy Service** del **Department of Consumer Affairs**

Numero telefonico: (02) 377 9100 Per chi chiama da fuori Sydney: (1800) 451 301

Chi avesse bisogno di un **Interprete** deve chiamare il Servizio telefonico interpreti ai seguenti numeri per farsi mettere in contatto con il **Tenancy Service**:

Sydney: 221 1111, Newcastle: 13 1450 Wollongong: 13 1450

ΑΠΟ ΠΟΥ ΘΑ ΠΑΡΕΤΕ ΒΟΗΘΕΙΑ**GREEK**

Για πληροφορίες σχετικά με αυτή τη συμφωνία ή βοήθεια για οποιοδήποτε πρόβλημα ενοικίασεως τηλεφωνείτε στο **Department of Consumer Affairs Tenancy Service**:

Τηλέφωνο: (02) 377 9100 Δωρεάν Τηλέφωνο Toll Free: (1800) 451 301

Εάν χρειάζεσθε **Διερμηνέα** τηλεφωνείτε:

Sydney: 221 1111, Newcastle: 13 1450 Wollongong: 13 1450

Αυτοί θα επικοινωνήσουν με την **Tenancy Service** για λογαριασμό σας.

អ្នកត្រូវបានជួយដោយ**KHMER**

សម្រាប់ព័ត៌មានអំពីកិច្ចសន្យាឬជំនួយសម្រាប់បញ្ហាណាមួយ អ្នកអាចទាក់ទង

នឹងអង្គភាព : **Department of Consumer Affairs Tenancy Service**:

Telephone: (02) 377 9100 Toll Free: (1800) 451 301

បើអ្នកត្រូវការអ្នកបកប្រែសម្រាប់ :

SYDNEY : 221-1111 NEWCASTLE : 13 1450

WOLLONGONG : 13 1450

ពួកគេនឹងទាក់ទងអ្នកសេវាជំនួយរបស់យើង៖

어디서 도움을 받을 수 있는가**KOREAN**

본 계약에 관해 알고 싶은 정보나 가옥 임대차 문제에 대한 도움이 필요하면,

Department of Consumer Affairs Tenancy Service 로 전화를 하십시오.

전화: (02) 377 9100 복지 장기리 무료 전화: (1800) 451 301

통역이 필요하면 다음 번호로 전화하십시오.

Sydney: 221-1111 Newcastle: 13 1450

Wollongong: 13 1450

그러면 통역은 여러분을 위해 **Tenancy Service**로 직접 연락을 해 줄 것입니다.

ຈະຊອກຫາການຊ່ວຍເຫຼືອໄດ້ບໍ່**LAOTIAN**

ເພື່ອຂໍຂໍ້ມູນກ່ຽວກັບສັນຍາ ຫຼື ການຊ່ວຍເຫຼືອໃນການແກ້ໄຂບັນຫາຕ່າງໆ

ທ່ານຕ້ອງການຊ່ວຍເຫຼືອ ໃຫ້ໂທສະສັບເລີຍ: **Department of Consumer Affairs Tenancy Service**:

ນ້ຳມືໂທສະສັບ: (02) 377 9100

ນ້ຳມືໂທສະສັບໂດຍ ຖ້າໄດ້ໂທບໍ່ໄດ້ຈາກນ້ຳມືໂທສະສັບ: (1800) 451 301

ຖ້າທ່ານຕ້ອງການ ນຳມືມາສາ ໃຫ້ທ່ານໂທສະສັບນ້ຳມືດັ່ງນີ້:

SYDNEY: 221-1111

NEWCASTLE: 13 1450

WOLLONGONG: 13 1450

ບໍລິການຊ່ວຍເຫຼືອນຳມື ຈະຕິດຕໍ່ກັບບໍລິການ **TENANCY SERVICE** ໃຫ້ທ່ານເປັນ

КАДЕ ДА ПОБАРАТЕ ПОМОШ**MACEDONIAN**

За информации во врска со оваа согласност или помош за било какви станарски проблеми јавете се на телефон до Министерството за Станбени Прашања **Department of Consumer Affairs Tenancy Service**:

Телефон: (02) 377 9100 — Бесплатно: (1800) 451 301

Ако ви е потребен **Преведувач** јавете се на следните телефонски броеви:

Sydney: 221-1111, Newcastle: 13 1450 Wollongong: 13 1450

Преведувачот ќе ја контактира Станарската Служба, **Tenancy Service**, за вас.

MINN FEJN IGGIB L-GHAJNUNA**MALTESE**

Għal informazzjoni dwar dan il-ftehim jew għajnuna għal xi problema ta'kiri cempel the **Department of Consumer Affairs Tenancy Service**:

Telefon: (02) 377 9100 Toll Free: (1800) 451 301

Jekk trid **Interpretu** cempel:

Sydney: 221 1111, Newcastle: 13 1450

Wollongong: 13 1450

Huma jikkuntattjaw lit- **Tenancy Service** għalik.

PERSIAN**محل کسب اطلاع و کمک**

برای کسب اطلاع در باره این موافقت نامه یا کمک در مورد مشکلات اجاره نشینی به سرویس اجاره نشینی وزارت مسکن **Department of Consumer Affairs Tenancy Service** تلفن کنید.

Telephone: (02) 377 9100 Toll Free: (1800) 451 301

اگر احتیاج به مترجم دارید به شماره های زیر تلفن کنید: سیدنی ٢٢١ ١١١١

نیوکاسل 13 1450 ولونگانگ 13 1450

برای شما با سرویس اجاره نشینی تماس **Tenancy Service** خواهند گرفت.

GDZIE UDAĆ SIĘ PO POMOC**POLISH**

Po informację w sprawie tej umowy lub po pomoc w przypadku problemów z wynajmem proszę dzwonić do **Department of Consumer Affairs Tenancy Service**:

Zadzwoń pod number: (02) 377 9100 Połączenie Bezpлатne: (1800) 451 301

Jeżeli potrzebujesz pomocy **Tłumacza** zadzwoń pod numer:

Sydney: 221 1111, Newcastle: 13 1450 Wollongong: 13 1450

Tłumacz połączy się z **Tenancy Service** w twoim imieniu.

ONDE CONSEGUIR AJUDA**PORTUGUESE**

Para obter informações sobre este acordo ou ajuda para os problemas de locação telefone ao **Tenancy Service** do **Department of Consumer Affairs**

Telefone: (02) 377 9100 Chamada Grátis: (1800) 451 301

Se precisar de um **Interprete** telefone para: Sydney: 221 1111,

Newcastle: 13 1450 Wollongong: 13 1450

Os intérpretes chamarão o **Tenancy Service** para si.

КОМЕ МОЖЕТЕ ДА СЕ ОБРАТИТЕ ЗА ПОМОШ**SERBIAN**

За информацију у вези овог уговора или у вези помоћи око било каквог станарског проблема молимо назовите **Department of Consumer Affairs Tenancy Service**:

Телефон: (02) 377 9100 Бесплатан Позив (Toll Free): (1800) 451 301

Ако Вам је потребан **Тумач** назовите следеће бројеве:

Sydney: 221 1111, Newcastle: 13 1450 Wollongong: 13 1450

Они ће контактирати Станарску службу у Ваше име.

DONDE OBTENER AYUDA**SPANISH**

Para obtener información sobre este acuerdo o ayuda en cualquier problema de arriendo, telefonée al **Tenancy Service** del **Department of Consumer Affairs**

Teléfono: (02) 377 9100 Libre de cargo: (1800) 451 301

Si Ud. necesita un **Interprete** telefonée a: Sydney: 221 1111,

Newcastle: 13 1450 Wollongong: 13 1450

Ellos se comunicarán con el **Tenancy Service** por Ud.

NEREDEN YARDIM ALINABİLİR**TURKISH**

Bu anlaşmayla ilgili bilgi veya kiracılık sorunlarıyla ilgili yardım için **Department of Consumer Affairs Tenancy Service**'ne telefon ediniz.

Telefon: (02) 377 9100 Kent dışı telefonlar: (1800) 451 301

Tercümana ihtiyacınız varsa şu numaralara telefon ediniz:

Sydney: 221 1111, Newcastle: 13 1450

Wollongong: 13 1450

Sizin için Kiracılık Servisi ile ilişkiye geçeceklerdir.

BẠN NHẬN ĐƯỢC GIÚP ĐỠ Ở ĐÂU**VIETNAMESE**

Muốn được tài liệu về hợp đồng này hoặc muốn được giúp đỡ trong mọi vấn đề về thuê nhà, xin điện thoại **Department of Consumer Affairs Tenancy Service**:

Điện thoại: (02) 377 9100 Gọi xa miễn phí: (1800) 451 301

Nếu bạn cần **thông dịch viên**, hãy điện thoại: Sydney: 221 1111,

Newcastle: 13 1450 Wollongong: 13 1450

Sẽ có người liên lạc với Dịch vụ Thuê Nhà cho bạn.

SEWERAGE SERVICE DIAGRAM

Municipality of **[REDACTED]** No. 723095

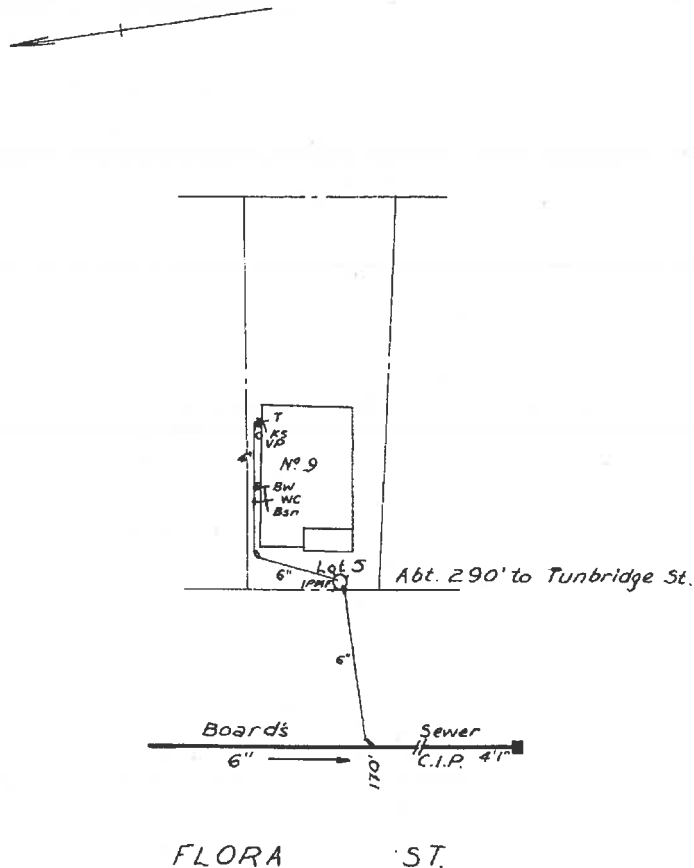
SYMBOLS AND ABBREVIATIONS

☐ Boundery Trap	☒ R.V. Reflux Valve	I.P. Induct Pipe	Ben. Basin
☐ Pit	☐ Cleaning Eye	M.P. Mica Flap	Shr. Shower
☐ G.I. Grease Interceptor	☐ VERT. Vertical Pipe	T. Tubs	W.I.P. Wrought Iron Pipe
☐ Gully	☐ V.P. Vent. Pipe	K.S. Kitchen Sink	C.I.P. Cast Iron Pipe
☒ P.T. P. Trap	☐ S.V.P. Soil Vent. Pipe	W.C. Water Closet	F.W. Floor Waste
☒ R.S. Reflux Sink	☐ D.C.C. Down Cast Cowl	B.W. Bath Waste	W.M. Washing Machine

SCALE: 40 FEET TO AN INCH.

SEWER AVAILABLE

Where the sewer is not available and a special inspection is involved the Board accepts no responsibility for the suitability of the drainage in relation to the eventual position of the Board's Sewer.



RATE No. _____ W.C.s _____ U.C.s _____ 19__

SHEET No. 2552

OFFICE USE ONLY

FOR ENGINEER HOUSE SERVICES

DRAINAGE			PLUMBING		
W.C.	Supervised by	Date	BRANCH OFFICE	Supervised by	Date
Bth	Inspector	/ /	Date	Inspector	/ /
Shr		/ /	/ /		
Ben.	Chief Inspector	/ /	Outfall	797 326	/ /
K.S.		/ /	Drainer		
T.	Tracing Checked	/ /	Plumber		
Pig.		/ /	Boundary Trap		
Dgo. Int.					

NOTE This diagram only indicates availability of a sewer and any sewerage service shown as existing in Sydney Water's records. The existence and position of Sydney Water's sewers, stormwater channels, pipes, mains and structures should be ascertained by inspection of maps available at any of Sydney Water's Customer Centres. Position of structures, boundaries, sewers and sewerage services shown hereon are approximately only.